GradingPal

Privacy terms and statements | Source archive

Retrieved 10 October 2026

Policy and supporting documents captured

Includes the listed GradingPal site and the Alayna GradingPal product site identified in the spreadsheet. The documents retain their own named controllers and product scopes.

About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

Sources

01. Privacy

02. EU/UK Privacy

03. Privacy Notice

04. Security and privacy

05. Terms

06. Student DPA

07. Data Processing Addendum

08. Sub-processors

09. Terms of Use

Competitor website

01 | Privacy

https://www.alayna.ai/privacy

Webpage text snapshot | Retrieved 10 October 2026

Privacy Policy

Last Updated: January 5, 2026

This Privacy Policy describes how Cues Technologies Inc. ("Alayna," "us," "we," and "our") handles teacher and student personal information that we collect through our website, https://alayna.ai, and the Alayna AI platform (collectively, the "Service" or "Services").

Alayna respects student data privacy laws. We support schools in complying with FERPA, and we comply with COPPA. We have taken the Student Privacy Pledge. For specific questions, please contact hello@alayna.ai.

Privacy Principles

We will not collect, maintain, use or share teacher and student personal information beyond that needed for authorized educational/school purposes, or as authorized by the parent/student. We adhere to the NIST Cybersecurity Framework.

We promise to:

Collect only the minimum personal information necessary to provide our Services

Not sell your personal information to third parties

Not advertise or use your personal information for advertising

Enable you to control the personal information you provide to us

Protect your personal information

Teacher Information

We collect the minimal amount of information needed from teachers to deliver our Services. This information includes:

Account information, including first name, email address, school name. Last name is optional.

Content, such as your conversations with the AI chatbot, your written assignments, and other information you submit through the platform or that is associated with your engagement with the Services.

Customer support requests, such as when you contact us with questions or feedback.

Testimonials, if you choose to give us a testimonial about your experience with the Services. With your permission, we may post your testimonial and related information publicly on the Services. To request the removal of your testimonial, please contact hello@alayna.ai.

Information We Obtain from Third Parties

Integrated technologies, such as Google Login or Clever. Only if you choose to use these integrated technologies will we receive information such as your name and email address.

Automatic Data Collection

We and our service providers may automatically log information about you, your computer or mobile device, and your interactions over time with our Services, our communications, and other online services, such as:

Device data, such as your computer's or mobile device's operating system type and version, manufacturer and model, browser type, screen resolution, device type (e.g., phone, tablet), IP address, unique identifiers, language settings, mobile device carrier, radio/network information (e.g., WiFi, LTE, 4G), and general location information such as city, state or geographic area. We do not collect your exact geolocation.

Online activity data, such as pages or screens you viewed, how long you spent on a page or screen, navigation paths between pages or screens, information about your activity on a page or screen, access times, duration of access, and whether you have opened our emails or clicked links within them.

We use the following tools for automatic data collection

Cookies, which are text files that websites store on a visitor's device to identify the visitor's browser or to store information or settings in the browser for the purpose of helping the visitor navigate between pages efficiently, remembering preferences, enabling functionality, and helping us understand user activity and patterns. You can adjust your web browser's settings to refuse cookies.

Web beacons, also known as pixel tags or clear GIFs, which are used to demonstrate that a webpage or email was accessed or opened, or that certain content was viewed or clicked.

Student Information

We collect the minimal amount of information needed from teachers to deliver our Services. This includes:

Email address, so the student can login. We alter the email address to protect student privacy. We never contact students for marketing purposes.

First name, so that the teacher can see who submitted which submission.

Content, which is the student's submission to an assignment created by their teacher.

For school and district partners, we may collect additional student information if requested to do so.

Parents and guardians may review the information we have collected from your student or ask us to make no use of, or delete, such information. You can send your request to hello@alayna.ai and include your name, your student's email, and the action you would like us to take. If your student uses our services through their school, please contact the school or school district with your request.

How We Use Your Personal Information

We do not rent, sell, or exchange teacher or student personal information to any third party. We do not advertise. We do not build personal profiles of students other than for supporting authorized educational/school purposes or as authorized by a school or school district.

To provide our Services

Provide, operate, maintain, secure, and improve our Services.

Provide you with customer service, and respond to your requests and feedback.

Communicate with you about our Services, including by sending you announcements, updates, security alerts, and support and administrative messages.

Understand your needs and interests, and personalize your experience with our Services and our communications.

Research and development

We first turn teacher and student personal information into anonymous data by removing information that makes the data personally identifiable to you. Then, we use this de-identified data for research and development purposes. The goal of research and development is to improve our Services. We may further aggregate the de-identified information. We may use de-identified data and share it with third parties for our lawful business purposes. We only share data with third parties that adhere to our policies and pledge to protecting student privacy. We do not share teacher or student personally identifiable information with AI service providers. Google Workspace APIs are not used to develop, improve, or train generalized AI and/or ML models.

For compliance and protection

Comply with applicable laws, lawful requests, and legal process, such as to respond to subpoenas or requests from government authorities.

Protect our, your or others' rights, privacy, safety, or property (including by making and defending legal claims).

Audit our internal processes for compliance with legal and contractual requirements and internal policies.

Enforce the terms and conditions that govern our Services.

Prevent, identify, investigate and deter fraudulent, harmful, unauthorized, unethical or illegal activity, including cyberattacks and identity theft.

How We Share Your Personal Information

We do not rent, sell, or exchange teacher or student personal information to any third party. We do not advertise.

We may share:

Data that you ask us to share: For users who belong to the same educational institution, we share personal information, that you ask us to share, with other authorized users of the Services. For example, teachers can view their own students' completed assignments and conversations through the AI chatbot.

Approved service providers: We hold approved service providers to the same privacy and security requirements as ourselves. We only share information with third-party companies if it is necessary to deliver our Services (such as cloud hosting, database management, and email delivery) and if the third party company adheres to our policies and pledge to protecting student privacy. We do not share teacher or student personally identifiable information with AI service providers. Google Workspace APIs are not used to develop, improve, or train generalized AI and/or ML models.

Government authorities: We may disclose teacher or student personal information to law enforcement, government authorities, or private parties in order to comply with the law or a valid legal request.

Business transfers: In the event of an acquisition, merger, or reorganization or sale of assets, or in the event of bankruptcy or dissolution, we will require the acquiring company to act in accordance with this Privacy Policy or allow users a choice to send information to the future entity or have their information deleted.

Your Choices

Access, update, or delete your account information

You may access or update your personal information in your account by logging in and editing your information or by emailing hello@alayna.ai. Parents may inspect and correct information for students. Schools and districts may access, update, or delete student data maintained by the school or district. You can request that we delete your account by emailing us at hello@alayna.ai. We may retain de-identified data after you delete your account, in order to improve the operation of our Services; this data will not contain your personal information.

Opt out of emails

You may opt out of product update emails by following the opt-out or unsubscribe instructions at the bottom of the email. You may continue to receive critical Service-related emails.

Online tracking opt out

There are a number of ways to limit online tracking, which we have summarized below:

Blocking cookies in your browser: Most browsers let you remove or reject cookies. To do this, follow the instructions in your browser settings.

Using privacy plug-ins or browsers: You can block our services from setting cookies by using a browser with privacy features, like Brave, or installing browser plugins like Privacy Badger, DuckDuckGo, Ghostery or uBlock Origin.

Do Not Track: Some Internet browsers may be configured to send "Do Not Track" signals to the online services that you visit. We currently do not respond to "Do Not Track" or similar signals. To find out more about "Do Not Track," please visit https://www.allaboutdnt.com.

Data Retention

We retain your information to deliver our Service, but we do not retain it longer than necessary to support the authorized educational/school purposes, or as authorized by the user.

You can deactivate your account by going to your account settings. When you deactivate an account, you will not be able to access it, there will be no further activity in your account, and other users will no longer see any information connected to your account. For students and teachers, this means your school will no longer be able to access

information connected to your account. You may restore the account by contacting hello@alayna.ai.

When you deactivate your account, we turn personal information into anonymous data by removing information that makes the data personally identifiable to you. We retain this de-identified data to improve our product. You may contact us if you would like your data to be permanently deleted.

In the case of school contracts, the school may request that we deactivate and de-identify accounts, and we will do so, unless there is a regulatory or valid legal need to retain certain information.

Privacy Protection & Security

Protecting your privacy and security is important to us. We adhere to the NIST Cybersecurity Framework.

We use strict user access controls, multi-factor authentication, and a combination of technical and procedural safeguards to protect your data. We secure data in transit and at rest using encryption. We have an incident response plan in place and a breach notification protocol. Despite these risk mitigation strategies, no security measures are perfect or impenetrable, and we cannot guarantee "perfect security." Any information you transmit to us you do at your own risk.

Please note that any information you send to us electronically, while using the Services or otherwise interacting with us, may not be secure when it is transmitted to us. We recommend that you do not use unsecure channels to communicate sensitive or confidential information to us.

International Visitors

If you use our Service outside of the United States, your data is collected in the country where you are located and then transferred to the United States where our servers are located.

If you are located within the European Union (EU), European Economic Area (EEA), or the United Kingdom (UK), you are afforded specific rights under the General Data Protection Regulation (GDPR) or the UK GDPR. These rights include the ability to access, rectify, erase, limit the processing of, or oppose the processing of your personal data. Should you wish to exercise any of these rights, please contact hello@alayna.ai.

Furthermore, as an EU/EEA or UK resident, you possess the right to file a complaint with your local data protection authority regarding our handling of your personal information.

State-Specific Provisions

California. We comply with SB-1177 SOPIPA. We will not use your information for purposes other than those indicated in the Terms of Service and this Privacy Policy. We do not use your information for targeted ads, and we do not sell your data.

Colorado. We will not use your information for purposes other than those indicated in the Terms of Service and this Privacy Policy. Our privacy and security policies include only providing access to information on an as-needed basis.

Florida. In the event of a breach, we will notify you in accordance the Florida Information Protection Act of 2014.

Illinois. We comply with Illinois' Student Online Personal Protection Act (SOPPA).

Maine. We comply with Maine's Student Information Privacy Act.

Maryland. We do not use your information for targeted ads.

New York. We comply with New York Education Law § 2-d and the Parents' Bill of Rights for Data Privacy and Security.

Pennsylvania. In the event of a breach, we will notify you in accordance with the Pennsylvania's Breach of Personal Information Notification Act.

Washington. We will notify you of material changes in this Privacy Policy.

Changes to this Privacy Policy

We may modify this Privacy Policy from time to time, in which case we will provide prominent notice to the users and account holders and provide choices before data is used in any manner inconsistent with the original terms. This will be accomplished through a prominent statement stating that the policy has been changed the first time the user logs on following the change and users provide consent by continuing to use the service. We will not make changes to policies that are inconsistent with our contractual requirements. Data collected under a school or district contract supersedes individual consent to the Privacy Policy and Terms of Service.

Contact Us

Please direct questions or comments about this Policy or our privacy practices to:

Email: hello@alayna.ai

02 | EU/UK Privacy

https://www.gradingpal.com/eu-privacy

Webpage text snapshot | Retrieved 10 October 2026

Legal

EU & UK Privacy Notice

Last updated 28 April 2026

Table of Contents

1Introduction

GradingPal offers an AI-powered grading and feedback tool for educators that automates rubric-aligned scoring, provides feedback generation across multiple assignment types including written work, handwritten submissions, essays, exams, worksheets, quizzes, problem sets, presentations, audio, video, art and design, and other instructional content, as well as performance analytics and other instructional productivity tasks (the “Service”).

This European and UK Privacy Notice (this “Privacy Notice”) sets out how we collect, store, process, transfer, share and use data that identifies or is associated with you (your “personal information”) when you access or use our website at www.gradingpal.com (the “Website”) or the Service from the European Economic Area (“EEA”) or the United Kingdom (“UK”).

Please ensure that you have read and understood this Privacy Notice before accessing or using the Service. If you have any questions, comments or requests regarding this Privacy Notice, please contact us using the details set out in Section 4 below.

2Who Is Responsible for Your Personal Information?

Our Service is intended for providers of educational services, such as schools, school districts and local education authorities. When we work with these entities, we mostly use personal information as a processor on behalf of the relevant school or, where applicable, the local authority or education board responsible for managing suppliers and service providers for the school. For ease, we refer to these administrative bodies collectively in this Privacy Notice as “Schools.”

Where we act as a processor for a School, the School determines and is responsible for how we process personal information. For further information about how we process personal information as a processor, you can view the descriptions in our Data Processing Addendum. However, if your School uses the Service and has uploaded your personal information to the Service, you should consult that School's privacy notice for information about how that personal information is used.

We do also process some personal information through our Website and our Service as a controller as described in this Privacy Notice. This means that, with respect to the processing of personal information described in this Privacy Notice, Cues Technologies Inc. (“GradingPal,” “we,” “us,” or “our”) determines and is responsible for how your personal information is used.

3Additional Information for Teachers

When you create a free account on our Service, you should make sure that you have the relevant School's authorisation to do so. When you sign up with your School's authorisation — which we will assume is the case where you sign up using your School email address — we will process personal information uploaded to the Service as a processor on behalf of your School.

However, if you sign up independently or without the School's authority, such as where you purchase a GradingPal Premium subscription using your own payment details, you will be the controller of, and responsible for, the processing of personal information relating to students that you or they upload to the Service. Save as set out in the section headed “Information Collected Automatically About All Users of the Service” below, we will use such personal information as a processor on your behalf as set out in our Data Processing Addendum.

4How to Contact Us

GradingPal (Cues Technologies Inc.)

9171 Wilshire Blvd, Ste 500

Beverly Hills, CA 90210

Email: hello@gradingpal.com

Website: www.gradingpal.com

EU/UK Data Protection Representative

GradingPal has appointed DataRep (Data Protection Representative Limited) as our data protection representative in the EU, EEA, UK and Switzerland, in accordance with Article 27 of the GDPR and Article 27 of the UK GDPR.

If you are located in the EU, EEA, UK or Switzerland and wish to raise a question or exercise your data protection rights, you may contact our representative DataRep by:

Email: contact@datarep.com (please reference “GradingPal / Cues Technologies Inc.” in the subject line)

Online: www.datarep.com/contact

Post: DataRep, 77 Camden Street Lower, Dublin D02 XE80, Ireland

The above contact details are for data protection enquiries directed to our EU/UK representative only. For general support, please contact us directly at hello@gradingpal.com.

5Personal Information We Collect and How We Use It

The personal information we collect and how we use it depends on your role and how you use the Service. The sections below cover each user category separately.

5A. Prospective Customers

If you contact us to express an interest in the Service, or if another user refers you to our Service by submitting your contact details to us, we will collect and use your personal information as follows:

Personal Data Collected | How We Use It | Lawful Basis |

Your contact information, such as your name, email address and the name of the school board, district or administration you work for. | To communicate with you, including responding to your queries and requests for further information about the Service. To send you updates about our Service if you sign up to our waitlist or newsletter. To send you promotional emails in accordance with your preferences. | The processing is necessary for our legitimate interests, namely communicating with prospective customers. We will only send promotional messages to the extent you give us your consent to do so. |

The content of any queries or comments that you submit to us. | To respond to and address your questions, issues and concerns. | The processing is necessary for our legitimate interests, namely communicating with prospective customers. |

5B. Visitors to Our Website

We automatically collect certain personal information about how you access and use our Website, and about the device you use to access the Website:

Personal Data Collected | How We Use It | Lawful Basis |

Information about the device you use to access the Website, such as IP address, unique device identifying numbers, type of device, operating system, screen size, browser type and version, and your approximate location derived from your IP address. | To present the Website to you on your device. To monitor and detect fraud or suspicious activity on our Website. To aggregate and monitor the performance of the Website and identify improvements. | The processing is necessary for our legitimate interests, namely to provide the Website to users and to monitor fraud and suspicious activity. Performance analytics require your consent. |

Information about how you interact with the Website, such as pages you view, features you use, and any errors that occur. | To present the Website to you. To monitor and detect fraud or suspicious activity. To aggregate and improve the Website and develop new features. | The processing is necessary for our legitimate interests, namely to provide the Website and monitor fraud. Improvement analytics require your consent. |

5C. School Account Administrators

If you are the main point of contact for a School's use of the Service, we will collect and use your personal information as follows:

Personal Data Collected | How We Use It | Lawful Basis |

Your contact information, such as your name, email address and the School that you work for. | To manage and administer your School's account, communicate with you about your School's account, and send service-related emails and invoices. To send you promotional emails in accordance with your preferences. | The processing is necessary for our legitimate interests, namely administering our contracts and relationships with our customers. Promotional emails require your consent. |

Questions, comments and other correspondence you send us, such as support requests or queries relating to the Service. | To manage and administer your School's account, respond to requests, and identify ways to improve the Service. | The processing is necessary for our legitimate interests, namely administering our contracts and informing our product development. |

5D. Teachers (School-Authorised Accounts)

If you are a teacher and your School has given you access to the Service, or you create an account with your School's permission, we will mostly use your personal information as a processor on behalf of the relevant School. This includes your name and contact details, authentication credentials, subjects and grades taught, content and materials created through the Service, websites you visit when you activate the Service, and feedback on content created by the Service.

We will also collect and use personal information about you as a controller for our own purposes as follows:

Personal Data Collected | How We Use It | Lawful Basis |

Your contact information, such as your name, email address and the School that you work for. | To send you promotional emails in accordance with your preferences. | We will only process your personal information in this way to the extent you have given us your consent to do so. |

The features and functionalities you use on the Service. | We aggregate this information to identify popular features and inform how we can improve our Service. | The processing is necessary for our legitimate interests, namely informing our product development and improvement. |

Questions, comments and other correspondence you send us. | To identify ways to improve the Service, including fixing errors and developing new features. | The processing is necessary for our legitimate interests, namely informing our product development and improvement. |

5E. Teachers (Independent / Self-Funded Accounts)

If you sign up to the Service independently (i.e., without a School's authorisation, or using your own payment details), we will collect and use your personal information as follows:

Personal Data Collected | How We Use It | Lawful Basis |

Your contact information, such as your name, email address and the School that you work for. | To set up and authenticate your account. To send you service-related communications. To send you promotional emails in accordance with your preferences. | Necessary for performance of our Terms of Use. Promotional emails require your consent. |

Your account tier (free or premium) and payment details (credit/debit card and billing address, processed by Stripe). | To grant access to Service features in accordance with your account tier and to process your subscription payment. | Necessary for performance of our Terms of Use. |

The subjects you teach and the year groups or grades of your students. | To generate statistics about how our Service is used and inform Service improvements. | The processing is necessary for our legitimate interests, namely informing our

product improvement. |

Content and materials you create through the Service, including rubrics, graded assignments, and feedback generated through the Service. | To provide you the features and functionalities of the Service, including AI-powered grading and feedback tools. To tailor the content generated for you. We do not use this information to train or improve our AI models. | Necessary for performance of our Terms of Use. |

Feedback you provide in relation to content generated through the Service. | To tailor the content generated for you. We do not use this information to train or improve our AI models. | Necessary for performance of our Terms of Use. |

Your communication preferences for service-related and promotional emails. | To send communications in accordance with your preferences and comply with our legal obligations. | Necessary for performance of our Terms of Use and compliance with legal obligations. |

Questions, comments and other correspondence you send us. | To respond to your questions and support requests. To identify ways to improve the Service. | Necessary for performance of our Terms of Use and our legitimate interests in product improvement. |

5F. Information Collected Automatically About All Users of the Service

We automatically collect certain personal information about the device you use to access and use the Service, such as IP address, unique device identifying numbers, type of device used, operating system, screen size, browser type and version, and your approximate location derived from your IP address.

We use this personal information as a processor on behalf of the relevant School to provide the Service to the relevant user, including facilitating logins and remedying login problems.

If you are a teacher on a free account and use the Service without authorisation from your School, we use this information for the above purposes as a controller. The lawful basis we rely on for processing personal information in this way is that it is necessary for the performance of a contract with you, namely our Terms of Use.

We also use this information to ensure the security and integrity of the Service, including ensuring that the Service is not overloaded. When doing so, we act as a controller of that personal information. The lawful basis we rely on is that it is necessary for our legitimate interests, namely ensuring the security and integrity of the Service.

5G. Students

When the Service is used by a School or teacher for educational purposes, we process personal information about students as a processor on behalf of the relevant School or teacher. The categories of student personal information we process are: identity data (full name, username, profile photo, and student ID where SIS-integrated); account and authentication data (email address and SSO tokens); academic information (class enrolments, course and section assignments, grade level, subjects, and course names); submitted assignments and coursework across all supported content types; grades, scores, and AI-generated feedback; communications data (messages, notifications, and other communications through the Service); performance analytics derived from grades and submissions; technical and device data (IP address, device type, operating system, browser, session identifiers, log data, timestamps, and cookies); and usage and analytics data (interaction patterns, time-on-task, submission timestamps, and feature usage). Student data is provided by teachers, submitted by students directly when joining a teacher-invited classroom, or imported from Google Classroom where the teacher has connected their account.

GradingPal integrates with Google Classroom. When a teacher connects their account, GradingPal may read class rosters, course details, and student submissions from Google Classroom, and may write AI-generated scores and feedback back to Google Classroom on the teacher's instruction. GradingPal's use of data received from Google APIs adheres to the Google API Services User Data Policy, including the Limited Use requirements.

The lawful basis for processing Student Data is performance of GradingPal's agreement with the School. GradingPal does not use Student Data to train AI models, for advertising, or for any purpose unrelated to the provision of the Service. For full details of how Student Data is handled, please refer to our Student Data Privacy Addendum.

6Cookies and Similar Technologies

Our Website uses cookies and similar technologies such as pixels and Local Storage Objects (LSOs) to distinguish you from other users of our Website and our Service. Please see our Cookie Policy for information about the cookies and similar technologies we use on our Website and our Service.

Other than cookies that are strictly necessary to operate our Website or our Service (such as cookies used to keep you logged in), we will only place cookies on your device where you have given your consent to us doing so. You can customise your cookie preferences at any time by accessing the cookie preferences centre through the cookie widget on our Website.

7How Long Will We Store Your Personal Information?

Information we process as a processor on behalf of a School is retained in accordance with the retention periods set by the relevant School, school administration, or as required by applicable law and the terms of the relevant school agreement.

Where we process personal information as a controller, we retain your personal information for as long as necessary to provide the Services and fulfill the purposes described in this Privacy Notice, or as required by applicable law. The specific periods depend on your relationship with GradingPal:

Individual Teacher accounts (whether school-authorised or independent): we retain your personal information for as long as your account remains active. Upon account closure, personal data will be deleted within 30 days of a written deletion request submitted to hello@gradingpal.com, unless we are required to retain it for longer under applicable law, to pursue or defend legal claims, or for other legitimate business purposes.

School and institutional accounts: data retention is governed by the terms of the applicable agreement between GradingPal and the School. Student Data is retained only for as long as necessary to provide the contracted Service and is deleted in accordance with the terms of the School's agreement with GradingPal, and in any event within 30 days of a written deletion request following termination of the agreement. GradingPal is developing the ability for school plan customers to configure automated data deletion schedules directly within the product, enabling schools to set deletion cycles aligned to their assessment calendar. This feature will be available to institutional customers on school plans.

Prospective customers and website visitors: we retain contact information and correspondence for as long as necessary to respond to your enquiry and maintain our business relationship, and will delete it upon request.

Device and log data (such as IP addresses): retained for as long as necessary for security monitoring and fraud prevention purposes, after which it is deleted or anonymised.

Regardless of the above, we may retain personal information where required by applicable law, court order, or to bring or defend a legal claim. If you wish to request deletion of your personal information, please contact us at hello@gradingpal.com.

8Security

We implement appropriate technical and organisational measures to protect your personal information against accidental or unlawful destruction, loss, change or damage. Our security controls include encryption of data at rest (AES-256) and in transit (TLS 1.2 or higher), role-based access controls, multi-factor authentication, intrusion detection systems, and a documented data breach response plan.

We will never send you unsolicited emails or contact you by phone requesting your account ID, password, credit or debit card information or national identification numbers.

9Who We Share Your Personal Information With

We may share your personal information as follows:

Recipients | Why We Share | How They Use It |

AI Service Providers — Anthropic PBC, OpenAI OpCo LLC, Google LLC (Gemini), Microsoft Corporation (Azure AI Foundry), Mistral AI SAS | We share personal information with AI providers that power our grading and feedback features. These providers are contractually prohibited from using your data to train their own models. | These recipients use personal information as processors on our instructions to provide AI-powered features. |

Infrastructure & Hosting Providers — Amazon Web Services Inc. (AWS S3), Supabase Inc., Vercel Inc., Render Services Inc., Google Cloud Platform, Upstash Inc. | We share personal information with infrastructure and hosting providers necessary to operate and deliver the Service. | These recipients host and process data as necessary to operate and deliver the Service, as processors on our instructions. |

Other Service Providers — analytics, customer support, fraud prevention, IT services | We share personal information with companies providing analytics, customer support, fraud prevention, IT services, and related services. | These recipients use personal information as processors on our instructions. |

Payment Processors — Stripe, Inc. | We share payment information with Stripe, Inc. to process subscription payments. | Stripe processes payment data subject to its own privacy policy and applicable payment card industry standards. |

Email Providers — Resend Inc., Loops Inc. | We use Resend Inc. and Loops Inc. to deliver transactional and lifecycle emails to teachers. | These providers receive teacher name and email address only. No Student Data is shared. The lawful basis is our legitimate interests in communicating with our users. |

Analytics and Monitoring Providers — Mixpanel Inc., Sentry (Functional Software Inc.), Axiom Inc. | We use Mixpanel Inc. for internal product analytics. Mixpanel receives teacher interaction data and student-related usage data including student identifiers and submission metadata, used solely for internal product improvement. We use Sentry for error tracking and Axiom for application log management. | Mixpanel: student identifiers and submission metadata for internal analytics. Sentry and Axiom: technical error and log data. Lawful basis: legitimate interests in maintaining and improving the Service. Where Student Data is involved, processing is also governed by GradingPal's agreement with the relevant School. |

Collaboration and Real-time Providers — Ably Realtime Ltd., Velt Inc. | We use Ably Realtime Ltd. for WebSocket infrastructure and Velt Inc. for collaborative annotation features on student submissions. | Ably processes session and connection metadata only. Velt renders annotation interfaces on student submission content for teacher feedback purposes. The lawful basis is performance of our contract with Schools and teachers. |

Internal Operations Providers — Notion Labs Inc., Slack Technologies LLC, Linear Orbit Inc. | We use Notion Labs Inc., Slack Technologies LLC, and Linear Orbit Inc. for internal project management, communications, and operations. Personal data may occasionally be referenced in these tools in the course of investigating technical issues, debugging, or internal communications. | Access to personal data in these tools is limited to authorised GradingPal personnel on a need-to-know basis. The lawful basis is our legitimate interests in managing our internal operations. |

Customer Support Providers — Chatwoot Inc. | We use Chatwoot Inc. to provide in-app support to teachers. | Chatwoot receives teacher contact information and support correspondence only. No Student Data is shared. The lawful basis is our legitimate interests in providing customer support. |

Buyers of Our Business | We may share personal information in connection with a merger, acquisition, bankruptcy, or sale of assets. | These recipients use personal information to complete the transaction. The lawful basis is our and the recipient's legitimate interests in completing the transaction. |

Law Enforcement, Regulators and Other Parties | We may share personal information as required by law or to: (i) comply with law enforcement requests; (ii) detect and investigate illegal activities and breaches of agreements; and/or (iii) exercise or protect the rights, property, or personal safety of GradingPal, its users or others. | These recipients use personal information in the performance of their regulatory or law enforcement role. The lawful basis is compliance with a legal obligation or our legitimate interests in enforcing our rights. |

10Advertising

Promotional Emails

From time to time we may contact School account administrators and teachers with information about our products and services, including sending you marketing messages and asking for your feedback on our products and services. We will only send you marketing messages if you have given us your consent to do so. You can withdraw your consent at any time by clicking on the “unsubscribe” link at the bottom of our marketing emails.

Online Advertising

We may work with online advertising networks and advertising partners to serve advertisements about GradingPal on other websites that you visit. Any online advertising we conduct on our Website is subject to your cookie consent. We will only collect and share information about your use of our Website for advertising purposes to the extent you have given us your consent to do so through our cookie preferences centre.

GradingPal does not serve advertising within the Service itself. Our Service is free from advertising to ensure a secure, distraction-free educational environment for both Students and Educators. We do not use Student Data for advertising purposes under any circumstances.

11International Transfers

By default, the personal information we collect may be transferred to and stored in countries outside of the EEA or UK where we and our third-party service providers have operations, including in the United States.

In the event of such a transfer, we ensure that it is made in accordance with applicable data protection law, including by relying on one or more of the following lawful transfer mechanisms as appropriate: (i) an adequacy decision confirming the destination country provides equivalent protection; (ii) certification of the recipient under an approved data privacy framework such as the EU-US Data Privacy Framework or the UK-US Data Bridge; (iii) Standard Contractual Clauses adopted by the European Commission or approved under applicable UK law; or (iv) such other lawful transfer mechanism as may be recognised under applicable law from time to time.

When we transfer your personal information to recipients in the United States, the majority of our service providers are certified under the EU-US Data Privacy Framework and/or the UK-US Data Bridge, which provides a lawful basis for these transfers. Where a recipient is not covered by such a framework, we rely on Standard Contractual Clauses or other appropriate safeguards.

If you wish to enquire further about the safeguards we use, please contact us using the details set out in Section 4 above.

12Your Privacy Rights

In accordance with applicable privacy law (including the EU GDPR and UK GDPR), you have the following rights in respect of your personal information that we hold:

Right of Access: You have the right to obtain confirmation of whether, and where, we are processing your personal information; information about the categories of personal information we are processing, the purposes for which we process it, and information about how we determine applicable retention periods; information about the categories of recipients with whom we may share your personal information; and a copy of the personal information we hold about you.

Right of Portability: You have the right, in certain circumstances, to receive a copy of the personal information you have provided to us in a structured, commonly used, machine-readable format that supports re-use, or to request the transfer of your personal information to another person.

Right to Rectification: You have the right to obtain rectification of any inaccurate or incomplete personal information we hold about you without undue delay.

Right to Erasure: You have the right, in some circumstances, to require us to erase your personal information without undue delay if the continued processing of that personal information is not justified.

Right to Restriction: You have the right, in some circumstances, to require us to limit the purposes for which we process your personal information if the continued processing of the personal information in this way is not justified, such as where the accuracy of the personal information is contested by you.

Right to Withdraw Consent: If you have provided consent for the processing of your personal information, you have the right to withdraw your consent at any time. Withdrawal of consent will not affect the lawfulness of our use of your personal information before your withdrawal.

Right to Object: You have the right to object to any processing based on our legitimate interests where there are grounds relating to your particular situation. There may be compelling reasons for continuing to process your personal information, and we will assess and inform you if that is the case. You can object to marketing activities for any reason.

If you wish to exercise one of these rights, please contact us using the contact details set out in Section 4. Due to the confidential nature of data processing, we may ask you to confirm your identity when exercising the above rights.

13Complaints

If you believe we have not complied with our obligations under applicable privacy law, you have the right to lodge a complaint with your local data protection authority.

If you are in the United Kingdom, information about how to contact the Information Commissioner's Office (ICO) is available at www.ico.org.uk.

If you are in the European Economic Area, information about how to contact your local data protection authority is available at edpb.europa.eu.

We would, however, appreciate the opportunity to deal with your concerns before you approach your data protection authority, so please contact us in the first instance using the contact details in Section 4 above.

14Updates

We may update this Privacy Notice from time to time and so you should review this page periodically. When we change this Privacy Notice, we will update the “Effective Date” above. We will notify you of any material changes using the contact details you have provided to us. Changes to this Privacy Notice are effective when they are posted on this page.

Applicable Jurisdictions: European Economic Area (EEA) and United Kingdom | Effective Date: April 28, 2026

Cues Technologies Inc. (GradingPal) | hello@gradingpal.com

Cues Technologies Inc., 9171 Wilshire Blvd, Ste 500, Beverly Hills, CA 90210, United States · hello@gradingpal.com

03 | Privacy Notice

https://www.gradingpal.com/privacy

Webpage text snapshot | Retrieved 10 October 2026

Legal

Privacy Notice

Last updated 28 April 2026

This Privacy Notice applies to the products and services of Cues Technologies Inc. ("GradingPal," "we," "our," or "us") that link to this page, including GradingPal's web application and any related tools and integrations (collectively, our "Service").

Through our Service, we provide AI-powered grading tools that assist with rubric-aligned scoring, feedback generation across multiple assignment types including written work, handwritten submissions, essays, exams, worksheets, quizzes, problem sets, presentations, audio, video, art and design, and other instructional content, as well as performance analytics and other instructional productivity tasks. This Privacy Notice describes how we: (1) collect, use and disclose your personal data as a controller when you use our Service or otherwise engage with us; and (2) how we process personal data in our role as a processor when our Service is used by providers of educational services, such as schools and school districts (collectively, "Schools"), as well as teachers and authorized school users and administrators (collectively, "Educators").

When the Service is used as part of a School's educational curriculum, the personal data related to students ("Students") that is (i) provided to GradingPal by a School, or (ii) collected by GradingPal during the provision of the Service to a School, may include information defined as "educational records" by the Family Educational Rights and Privacy Act ("FERPA"), "covered information" under California's Student Online Personal Information Protection Act ("SOPIPA"), "personal information" under Canadian provincial and territorial privacy legislation, "personal information" under the Australian Privacy Act 1988 (Cth), or other information protected by similar data privacy laws. We call this information "Student Data." The School is the controller of Student Data, and we handle Student Data in our role as a processor on behalf of the School. If you are a Parent or Student and have questions about specific practices relating to Student Data provided to GradingPal by a School, please direct your questions to your School.

For Australian users, please refer to Section 11 of this Privacy Notice for additional information about our overseas disclosure requirements and complaints handling process.

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For Australian Users Only

1. What Is Personal Data?

In short: Personal data means data or information that identifies or relates to you, or otherwise meets the definition below.

When we use the term "personal data" in this Privacy Notice, we mean any data or information that identifies, relates to, describes, is capable of being associated with or could reasonably be linked, directly or indirectly, with a particular natural person or household.

2. Our Collection of Personal Data as a Controller

In short: We collect personal data when you register for an account, use our Service, communicate with us, or integrate our Service with a third-party platform. We also collect some data automatically when you interact with our Service.

Information You Provide — Teachers

Identity and account data: Full name, username, profile photo, email address, and authentication tokens (SSO via Google, Microsoft, or other providers).

Professional and employment data: School or institution name and address, role and job title, subjects taught, grade levels, class rosters, and employee or staff ID where integrated with a school information system (SIS).

Billing and payment data: Billing name and address, subscription and invoice history. Payment method tokens are handled directly by Stripe and are not stored by GradingPal.

User-generated content: Assignments, rubrics, lesson materials, grading criteria, comments and feedback authored by teachers, and communications sent through the Service including custom invitation messages to students.

Personal Data Automatically Collected

We and our third-party providers may use cookies and related technologies (such as web beacons, pixels, embedded scripts, and logging technologies) to automatically collect certain data regarding how you interact with our Service, including log files and analytics data. This may include:

Technical and device data — IP address, device type, operating system, browser type and version, session identifiers, log data, and timestamps;

Usage and analytics data — features used, clicks, time spent, grading patterns, error reports, and diagnostic data; and

Location data derived from your IP address.

Personal Data from Third Parties

We also obtain personal data from third parties, which we may combine with data we collect directly. Sources include:

Third-Party Platforms: Some parts of our Service allow you to log in or link your account with a third-party platform, such as Google. If you register through or link your GradingPal account with Google (e.g., Google Classroom, Google Docs, Google Drive), we may collect personal data associated with your Google account, including your name, email address, courses, student rosters, course materials, document content, and Student submissions. Our Service's use and transfer of information received from Google APIs adheres to the Google API Services User Data Policy, including the Limited Use requirements.

Referral Information: We may receive your contact information from people who think you may be interested in our Service, for example through a referral program.

Other Sources: We may collect personal data from publicly available sources, third-party data providers, or through transactions such as mergers and acquisitions.

3. Our Use of Personal Data

In short: We use personal data to provide and improve our Service, communicate with you, ensure security, and comply with legal obligations. We never sell personal data or use it for advertising.

We use personal data to:

Verify your identity and check whether you are permitted to access certain features of our Service;

Provide our Service, including AI-powered grading, rubric alignment, feedback generation across multiple assignment types, and performance analytics;

Personalize our Service, including by recognizing you and remembering your information when you return;

Conduct research and analytics on our user base and our Service;

Send communications, including via email and notifications;

Improve and customize our Service to address the needs and interests of our user base;

Test, enhance, update and monitor the Service, and diagnose or fix technology problems;

Help maintain the safety, security and integrity of our Service, technology assets and business;

Enforce our contractual rights, resolve disputes, carry out our obligations, and protect our business interests and the interests and rights of third parties;

Prevent, investigate or provide notice of fraud or unlawful or criminal activity;

Comply with contractual and legal obligations and requirements; and

Fulfill any other purpose for which you provide personal data, or any other lawful purpose that you consent to.

We never sell personal data from our Service. We do not share personal data from our Service with third parties for their own marketing purposes. Our Service does not display advertising to users, ensuring a secure, distraction-free educational environment for both Students and Educators. We do not use third-party cookies on our Service for personalized advertising or to track users and display personalized advertisements on other websites or services.

4. Our Disclosure of Personal Data

In short: We share personal data with companies that help us provide our Service (including AI providers), your School, and others as described below. We do not sell personal data.

We may share, transmit, disclose, grant access to, make available, and provide personal data with and to third parties, as follows. For more information on how we share Student Data, please see Section 5 below.

AI Service Providers: We share personal data with service providers who enable us to provide AI-powered services, including providers of the large language models and machine learning infrastructure used to power our grading and feedback features. Our current AI service providers include Anthropic PBC, OpenAI OpCo LLC, Google LLC (Gemini), Microsoft Corporation (Azure AI Foundry), and Mistral AI SAS. These providers are contractually prohibited from using your data to train their own AI models. GradingPal itself does not use Student Data or other personally identifiable information to train AI models. Where we use data to evaluate or improve our Service, we do so only with fully de-identified data that no longer constitutes personal data.

Infrastructure and Hosting Providers: We share personal data with our infrastructure and hosting providers, including Amazon Web Services Inc. (AWS S3), Supabase Inc., Vercel Inc., Render Services Inc. (Render.com), Google Cloud Platform, and Upstash Inc. These providers host and process data as necessary to operate and deliver the Service.

Other Service Providers: We share personal data with service providers who assist with data analysis, fraud prevention, analytics, IT services, customer support, payment processing, and web hosting. Our current list of service providers is available at www.gradingpal.com/sub-processors. We impose contractual limits on how all service providers may use the personal data they receive.

Your School: If you interact with our Service through your School, we may disclose your information to your School and to authorized administrators.

Payment Processors: We use Stripe, Inc. to process payments. Stripe may collect and process payment information subject to its own privacy policy and terms of service.

Email Providers: We use Resend Inc. and Loops Inc. to deliver transactional and lifecycle emails to teachers. These providers receive teacher name and email address only and do not receive Student Data.

Analytics and Monitoring Providers: We use Mixpanel Inc. for internal product analytics to understand how the Service is used. Mixpanel receives teacher interaction data and student-related usage data including student identifiers and submission metadata. This data is used solely for internal product improvement and is not used for advertising, profiling, or any purpose unrelated to improving the Service. We use Sentry (Functional Software Inc.) for error tracking and Axiom Inc. for application log management and observability. These providers help us identify issues and understand

how the Service is used.

Collaboration and Real-time Providers: We use Ably Realtime Ltd. for WebSocket infrastructure and Velt Inc. for collaborative annotation features on student submissions. Ably processes session and connection data only. Velt renders annotation interfaces on student submission content for teacher feedback purposes.

Internal Operations Providers: We use Notion Labs Inc., Slack Technologies LLC, and Linear Orbit Inc. for internal project management, communications, and operations. Personal data may occasionally be referenced in these tools in the course of investigating technical issues, debugging, or internal communications. Access to personal data in these tools is limited to authorised GradingPal personnel on a need-to-know basis.

Customer Support Providers: We use Chatwoot Inc. to provide in-app customer support to teachers. Chatwoot receives teacher contact information and support correspondence only and does not receive Student Data.

Business Transaction or Reorganization: We may disclose personal data to a third party during negotiation of, in connection with, or as an asset in a corporate business transaction, such as a merger, acquisition, joint venture, or financing or sale of company assets. Personal data may also be disclosed in the event of insolvency, bankruptcy, or receivership. We will impose contractual limits on how applicable third parties may use personal data they receive in such a transaction.

Legal Obligations and Rights: We may disclose personal data to third parties, such as legal advisors and law enforcement: (i) in connection with the establishment, exercise, or defense of legal claims; (ii) to comply with laws or to respond to lawful requests and legal process; (iii) to protect the rights and property of GradingPal, our agents, users, and others; (iv) to detect, suppress, or prevent fraud; (v) to protect the health and safety of us, our users, or any person; or (vi) as otherwise required by applicable law.

With Your Consent or At Your Direction: We may share information about you with third parties whenever you consent to or direct such sharing.

5. Student Data

In short: We consider Student Data to be confidential and do not use it for any purpose other than providing the Service on the School's behalf. We comply with FERPA, COPPA, SOPIPA, and NY Education Law 2-d.

To help Schools address their obligations to protect student data privacy, we have implemented additional controls and procedures for Schools that use the Service as part of their educational curriculum. When the Service is used in this way, personal data related to Students that is (i) provided to GradingPal by a School, or (ii) collected by GradingPal during the provision of the Service to a School, may include information defined as "educational records" by FERPA, "covered information" under SOPIPA, "personal information" under Canadian provincial and territorial privacy legislation, or other information protected by similar data privacy laws. We call this information "Student Data."

What Student Data We Collect

We collect the following categories of Student Data to provide the Service:

Identity data — full name, username, profile photo, and student ID number where integrated with a school information system (SIS).

Account and authentication data — email address (which may be school-issued) and SSO authentication tokens.

Academic information — class enrolments, course and section assignments, grade level, school subject(s), and course name(s), provided by the teacher or imported from Google Classroom or a school information system.

Submitted assignments and coursework — written work, handwritten submissions, essays, exams, worksheets, quizzes, problem sets, presentations, audio, video, art and design, PDFs, images, and other instructional content submitted directly, uploaded by a teacher, or read from Google Classroom.

Grades, scores, and AI-generated feedback — AI-generated rubric-aligned scores and written feedback, teacher-reviewed scores, and existing grades read from or written back to Google Classroom on the teacher's instruction.

Communications data — messages, notifications, and other communications sent between teachers and students through the Service.

Performance analytics — aggregate and individual performance data derived from grades and submissions, used to provide teacher-facing reporting.

Technical and device data — IP address, device type, operating system, browser type, session identifiers, log data, and timestamps collected automatically when a student accesses the Service.

Usage and analytics data — interaction patterns, time-on-task, submission timestamps, and feature usage data.

Google Classroom Integration

GradingPal integrates with Google Classroom. When a teacher connects their Google Classroom account, GradingPal may read class rosters, course details, and student submissions from Google Classroom, and may write AI-generated scores and feedback back to Google Classroom on the teacher's instruction. GradingPal's use of data received from Google APIs adheres to the Google API Services User Data Policy, including the Limited Use requirements.

Our Commitments Regarding Student Data

As between us and the School, Student Data is owned and controlled by the School. Our collection and use of Student Data is in our role as a processor and is governed by our agreements with Schools and by applicable privacy laws.

We collect, maintain, use and share Student Data only for an authorized educational purpose and as described in our agreement with the School, or as directed by the School or by the Student's parent or legal guardian.

We do not use or disclose Student Data for targeted advertising purposes.

We do not build a personal profile of a Student other than in furtherance of an educational purpose.

We maintain a comprehensive data security program designed to protect the types of Student Data maintained by the Service.

We will never sell Student Data unless the sale is part of a corporate transaction such as a merger, acquisition, or bankruptcy, in which case we will require the new owner to continue to honor the terms of this Privacy Notice or provide the School with notice and an opportunity to opt out of the transfer by deleting the Student Data before the transfer occurs.

We will not make any material changes to our Privacy Notice or agreements that relate to the collection or use of Student Data without first giving notice to the School and providing a choice before Student Data is used in a materially different manner than was disclosed when the information was collected.

New York Education Law 2-d

For Schools and students in New York State, we comply with New York Education Law 2-d and its implementing regulations. In connection with our NY school contracts, we agree to:

Limit our use of Student Data to the purposes set forth in our agreement with the School;

Not sell Student Data;

Not disclose Student Data to any third party without prior written consent of the parent or eligible student, except as permitted under FERPA, Education Law 2-d, and our agreement with the School;

Maintain data security practices consistent with industry standards and applicable law;

Notify the School in the event of a data breach or unauthorized release of Student Data in accordance with NY Education Law 2-d; and

Upon expiration or termination of our agreement, return or destroy Student Data as directed by the School.

How We Share and Disclose Student Data

We disclose Student Data solely as needed to provide the Service on behalf of specific Schools in accordance with our agreements with those Schools or with the consent of the School or Parent. Student Data may be accessible by users who are authorized to use the Service on behalf of the School, such as school or district administrators.

We also disclose Student Data to trusted service providers who have a legitimate need to access such information on our behalf, subject to appropriate contractual terms. These providers are contractually prohibited from using Student

Data for any purpose other than providing services to us. Our AI service providers (Anthropic PBC, OpenAI OpCo LLC, Google LLC, Microsoft Corporation via Azure AI Foundry, and Mistral AI SAS) are specifically prohibited from using Student Data to train their AI models.

How We Use De-Identified Data

Where permitted by law and in accordance with our agreements with Schools, we may generate, use, and disclose de-identified information for adaptive learning purposes, research, analytics, and development and improvement of our Service. "De-identified information" means data from which all personally identifiable information has been removed or obscured so that the remaining information does not reasonably identify an individual. We agree not to attempt to re-identify de-identified data.

How We Retain Student Data

We will not knowingly retain Student Data beyond the time period required to support an educational purpose, unless authorized by the School. Schools are responsible for maintaining current class rosters and for managing Student Data they no longer need by submitting a deletion request to hello@gradingpal.com. GradingPal is also developing the ability for school plan customers to configure automated data deletion schedules directly within the product — allowing schools to set deletion cycles aligned to their assessment calendar without manual intervention. This feature will be available to institutional customers on school plans.

If you are using the Service on behalf of a School and wish to access, delete, or close your account, please contact us at hello@gradingpal.com. If you are a Parent or Student, please direct your request to your School.

6. Children's Privacy — Student-Facing Features

In short: GradingPal includes student-facing features accessible to children under 13 through school-mediated access only. We do not permit direct account creation by children under 13 outside of a school context.

GradingPal's student-facing features are designed to assist learners in reviewing AI-generated feedback on their submitted work. GradingPal does not permit children under the age of 13 to create accounts or access the Service directly outside of a school context. All access to the Service by children under 13 must be school-mediated — meaning access is granted through a school account by an authorized Teacher or Educational Institution. GradingPal will not collect personal data from children under 13 except through school-mediated access as described below. If an individual attempts to create an account and indicates they are under 13, they will be directed to access the Service through their school.

When GradingPal provides the Service on behalf of a School, the School provides consent for GradingPal to collect information from Students under the age of 13 through the Service, as permitted by the Children's Online Privacy Protection Act ("COPPA") and other applicable data privacy laws. In this case:

We collect and process personal data from Students under 13 solely at the direction of and under the control of a School, and do not require Students to disclose more information than is reasonably necessary to use the Service.

At all times, Schools have the right to request to review or delete personal data from Students under 13, or to decline to permit further collection or use of such data, by contacting hello@gradingpal.com.

Schools are responsible for providing appropriate notice to Parents of the School's use of third-party service providers such as GradingPal. We recommend that School customers provide a link to this Privacy Notice to all Parents.

Data Collected from a Child

When a child under 13 uses the Service, we collect the following information:

Information provided through use of the Service, including any files, documents, images of handwritten work, or other information the child chooses to provide;

Student-related information, such as topics of study, assignments, submitted work, and grades;

Usage information, such as date and time of visit, time spent on our Service, and activities completed; and

Device data and log files, including IP address, operating system, device type, and browser type.

We do not require the child to provide any more information than is reasonably necessary to use the Service.

How a Parent Can Access or Delete a Child's Data

A parent or guardian has the right to access the personal data we have collected from their child, withdraw consent for further collection, and request deletion. If you are a Parent of a child under 13 using the Service outside of school, please contact us at hello@gradingpal.com. If you are a Parent of a Student under 13 using the Service through a School, please contact your child's School. We will respond to the School's instructions with respect to your child's personal data.

7. Your Privacy Choices

In short: You can update your account information, disconnect third-party integrations, manage cookie preferences, opt out of marketing emails, and request access to or deletion of your data.

You may control your information in the following ways:

Profile and Account Settings: You may update your account information and change some of your account controls by visiting your account settings page or emailing us at hello@gradingpal.com.

Disconnecting Third-Party Platforms: You may disconnect your GradingPal account from third-party platforms such as Google Classroom at any time by visiting your account settings page.

Marketing Communications: You can stop receiving promotional email communications from us by clicking on the "unsubscribe" link in such communications. You may not opt out of service-related communications (e.g., account verification, transactional communications, changes to features of the Service, technical and security notices).

California Privacy Rights (CCPA/CPRA): If you are a California resident, you have the right to: (i) know what personal data we collect about you; (ii) request deletion of your personal data; (iii) opt out of the sale or sharing of your personal data (we do not sell or share personal data for advertising purposes); (iv) correct inaccurate personal data; and (v) limit the use and disclosure of sensitive personal information. To exercise these rights, please contact us at hello@gradingpal.com. We will not discriminate against you for exercising your privacy rights.

Do Not Sell or Share My Personal Information: We do not sell or share personal data for cross-context behavioral advertising. If you wish to submit a formal opt-out request, you may contact us at hello@gradingpal.com.

Accessing, Reviewing, Modifying or Deleting Your Information: If you want to access, review, modify or delete your information, please contact us at hello@gradingpal.com. We will respond in compliance with applicable data protection laws.

8. Security

In short: We maintain technical and organizational safeguards for personal data, including encryption, access controls, and a data breach response protocol.

GradingPal has a multi-tiered approach to protecting personal data that includes technical and organizational safeguards. Our security controls include, for example:

Encryption of data at rest (AES-256) and in transit (TLS 1.2 or higher);

Role-based access controls, limiting access to personal data to personnel with a need-to-know;

Multi-factor authentication for internal systems;

Firewalls, intrusion detection systems, and anti-malware protections;

Regular security audits and vulnerability assessments;

A documented data breach response plan; and

Staff training on data privacy and security practices.

For Schools that provide us with a designated point of contact for security breaches, GradingPal maintains a Student Data breach response protocol. In the event of unauthorized access to, disclosure or acquisition of Student Data, designated points of contact at Schools will be notified by email or other direct communication channels in accordance with the protocol and applicable law, including NY Education Law 2-d where applicable.

By default, we process and store personal data in the United States and other jurisdictions where our service providers are located. Please be aware that your personal information could therefore be accessed by law enforcement agencies, courts and other governmental authorities in those jurisdictions.

For individual Teacher accounts, GradingPal retains personal data for as long as the account remains active. Upon account closure, personal data will be deleted within 30 days of a written deletion request submitted to hello@gradingpal.com. For school and institutional accounts, data retention is governed by the terms of the applicable agreement and applicable law. Student Data is retained only for as long as necessary to provide the contracted Service and is deleted in accordance with the terms of the school's agreement with GradingPal.

9. Contact Us

In short: Please feel free to contact us with any questions. Our contact info is below.

If you have any questions or requests in connection with this Privacy Notice or other privacy-related matters, please contact us at:

Cues Technologies Inc. (GradingPal)

9171 Wilshire Blvd, Ste 500

Beverly Hills, CA 90210

Email: hello@gradingpal.com

Website: www.gradingpal.com

10. Updates to This Privacy Notice

In short: We may update this Privacy Notice. We will notify you of material changes as described below.

We will update this Privacy Notice from time to time. When we make changes, we will update the "Effective Date" at the beginning of this Privacy Notice. If we make material changes, we will provide reasonable notice to you, such as by email to your registered email address, by prominent posting on this website or our online services, or through other appropriate communication channels. All changes shall be effective from the date of publication unless otherwise provided.

We will not make any material changes to this Privacy Notice that relate to the collection or use of Student Data without first giving notice to the School and providing a choice before Student Data is used in a materially different manner than was disclosed when the information was collected.

11. For Australian Users Only

In some cases, we may need to disclose your personal information to our related entities, contractors and service providers that are located outside of Australia. Where this occurs, we take reasonable steps to ensure that all personal information is handled in a manner consistent with the Australian Privacy Principles. These overseas recipients are likely to be located in the United States.

If you have a complaint or believe we are in breach of the Australian Privacy Principles, or a relevant registered code under the Privacy Act 1988 (Cth), you can use the contact details in Section 9 above to notify us of any privacy complaints you have against us.

We will acknowledge your complaint in writing and will provide an estimated timeframe for our response (no more than 30 days). While it is our hope to resolve any complaints you may have, you can also lodge a complaint with the Office of the Australian Information Commissioner (OAIC) at www.oaic.gov.au.

Cues Technologies Inc., 9171 Wilshire Blvd, Ste 500, Beverly Hills, CA 90210, United States · hello@gradingpal.com

04 | Security and privacy

https://www.gradingpal.com/security

Webpage text snapshot | Retrieved 10 October 2026

Student data privacy and security for AI grading

GradingPal helps teachers assess student work and give useful feedback while providing schools with clear information about how that work is handled. Review the safeguards, published policies, and data agreements your institution needs to evaluate the service.

Student work is not used to train AI models.

Review the documentsAsk a privacy or security question

Review GradingPal's compliance information

GradingPal's published compliance information covers FERPA, COPPA, GDPR and UK GDPR, SOPIPA, and New York Education Law § 2-d. GradingPal is CASA Tier 2 verified. The documents below explain the commitments and processes relevant to your school's review.

FERPA

Compliant

COPPA

Compliant

GDPR

Compliant

CASA

Tier 2 Verified

Understand how student work supports the grading workflow

Teachers provide assignments, criteria, and supported student submissions. GradingPal processes that information to produce rubric-based scores, explanations, and feedback, with assessment evidence supporting relevant classroom insights and standards workflows.

Teachers review the assessment, make changes, and choose what to return. The responsible AI page explains those review controls. The Privacy Notice and applicable data agreement explain the handling of personal and student data.

Student work is not used for model training

Student work is not used to train AI models. The published EU/UK Privacy Notice also explains that AI providers processing personal information for the service are contractually prohibited from using it to train their own models. Read the EU/UK Privacy Notice.

Data is processed through documented service providers

GradingPal uses infrastructure and AI providers to deliver the service. The public sub-processor list identifies the providers and their roles so your team can review the processing chain. Review the current sub-processors.

Retention and deletion follow the applicable agreement

Retention, return, and deletion requirements depend on the applicable account relationship and agreement. Schools can review the Student Data Privacy Addendum and discuss their requirements with the team. For a request about your data, use the contact details in the applicable notice or agreement.

Review the safeguards around student data

The published Security Plan describes the controls, responsibilities, and processes used to protect student data. These summaries provide a starting point; the linked document contains the detailed provisions.

Encryption at rest and in transit

Student data is encrypted at rest using AES-256 and in transit using TLS 1.2 or higher, as described in the Security Plan. These safeguards cover stored data and data moving between users and the service.

Access controls and staff responsibilities

The Security Plan describes access restrictions and privacy and security training for personnel who handle student data. It also sets out processes for granting and removing access.

Provider review and data agreements

The Security Plan describes the review of sub-processors and written data protection requirements for providers that access student data. The current public registry gives your school the provider information to inspect.

Incident response and data return

The Security Plan sets out incident-response responsibilities and the data return and destruction process. Schools should review these provisions with the relevant data agreement when assessing their requirements.

Read the complete Security Plan

Find the documents your school needs

The following documents are publicly available. You can read them without booking a meeting or signing an NDA.

Privacy Notice

How GradingPal handles personal information and how to contact the company about privacy. Read the Privacy Notice.

Student Data Privacy Addendum

The published terms covering student data in the school relationship, including the relevant exhibits and obligations. Read the Student Data Privacy Addendum.

Data Processing Agreement

The published data-processing terms for the service. Read the Data Processing Agreement.

Security Plan

The documented security controls, responsibilities, and response processes. Read the Security Plan.

Sub-processor List

The current service providers involved in processing data and the information published about their roles. Read the Sub-processor List.

EU/UK Privacy Notice

Information about processing, transfers, rights, and requests for the EU/UK context. Read the EU/UK Privacy Notice.

Terms of Use

The terms governing use of GradingPal. Read the Terms of Use.

NY Education Law § 2-d vendor certificationCOPPA authorization and direct notice to schools

Request a data agreement for your institution

Start with the published documents, then tell us the institution name and any agreement or review requirements. Our team can discuss the appropriate data agreement and work from your district's template where possible.

Send your request

Use the DPA request form and include your institution's details. Tell us if your team has a template or specific questions.

Review the draft with your team

Our published process provides a DPA draft in 1–2 business days. Your legal and IT reviewers can then examine the processing terms, raise questions, and discuss changes with us.

Complete the agreement and your school's review

Once the parties agree the terms, the agreement can be countersigned. Your institution determines whether its wider procurement and approval requirements have been met.

Request a DPADiscuss your institution's requirements

Review the service in the context of your school

Your review may cover the kinds of student work teachers will upload, the LMS connection, account access, retention, and the use of feedback and classroom insights. Tell us which requirements apply so we can point you to the relevant documentation or discuss the proposed setup.

Google Classroom is available now. Canvas and Schoology are available on a school plan. The available integration and the details of your institution's data flow should be considered together. Explore GradingPal for schools.

Teachers evaluating GradingPal can start with their school's approved process, inspect the assessment controls, and share this documentation with the appropriate team. A school's software approval is a separate decision from whether an individual assignment was graded well.

Explore GradingPal for schools

Questions about GradingPal security and privacy

Which documents should our school read first?

Start with the Student Data Privacy Addendum, Security Plan, and current sub-processor list. Use the Privacy Notice, Data Processing Agreement, and EU/UK Privacy Notice as relevant to your relationship and jurisdiction. All are linked in the document directory above.

Can we ask about requirements specific to our institution?

Yes. Send your security, privacy, or agreement questions and identify the school or institution. We can discuss the requirements and the relevant published documents. Contact the team.

Does this page replace our school's review?

No. It provides information for that review. Your institution decides whether the service and agreements meet its requirements.

How is stored student data protected?

The Security Plan describes AES-256 encryption at rest, TLS 1.2 or higher in transit, access controls, and other operational safeguards. See the complete plan and sub-processor list for the documented service context.

Is student work used to train AI models?

No. Student work is not used to train AI models. The EU/UK Privacy Notice also describes contractual restrictions on training by AI service providers.

Where can we see which vendors process data?

Use the current Sub-processor List. The registry is the source for provider details; the number of providers can change as the service changes.

How do retention and deletion work?

Consult the applicable agreement and privacy notice for the account relationship. Schools can review the Student Data Privacy Addendum and contact the team about return or deletion requirements. This summary does not replace the terms that apply to a particular institution.

How should a parent or student raise a data question?

For work handled through a school, start with the school contact responsible for the student's information. The applicable privacy notice and student data agreement describe the request process and GradingPal's contact details.

Where can EU and UK institutions review privacy information?

Read the EU/UK Privacy Notice and the relevant data-processing agreement. They describe the published processing, transfer, and rights information. Contact us about requirements specific to your institution.

Is GradingPal SOC 2 certified?

GradingPal does not currently claim its own SOC 2 certification. CASA Tier 2 verification is a separate assessment. Any certification held by an infrastructure provider applies to that provider and should not be presented as GradingPal's certification.

How long does a DPA draft take?

The published process is a draft in 1–2 business days after the request. The time to review, negotiate, and complete your institution's approval depends on the requirements and the parties involved.

Can you work with our district's agreement template?

We work from district templates where possible. Include the template or explain the requirement when you contact the team; the parties will need to agree the terms.

What happens when a school stops using GradingPal?

The applicable agreement sets out the data return, retention, and destruction requirements. Review those provisions with your school team and contact GradingPal to coordinate the relevant request and process.

Get the information your school needs

Read the public documents, request a data agreement, or send the questions your team needs answered to evaluate GradingPal.

Request a DPAContact GradingPal

05 | Terms

https://www.alayna.ai/terms

Webpage text snapshot | Retrieved 10 October 2026

Terms of Service

Last Updated: January 5, 2026

Acceptance of These Terms of Service

Cues Technologies Inc., ("Alayna," "we," "us," or "our") provides our services (described below) and related content to you through our website(s) located at https://alayna.ai (the "Site") and through our related technologies (collectively, such technologies and the Site, including any updated or new features and functionality, the "Service"). All access and use of the Service is subject to the terms and conditions contained in these Terms of Service (as amended from time to time, these "Terms of Service"). By accessing, browsing, or otherwise using the Site or any other aspect of the Service, you acknowledge that you have read, understood, and agree to be bound by these Terms of Service. If you do not accept the terms and conditions of these Terms of Service, you will not access, browse, or otherwise use the Service.

We reserve the right, at our sole discretion, to change or modify portions of these Terms of Service at any time. If we do this, we will post the changes on this page and will indicate at the top of this page the date these Terms of Service were last revised. You may read a current, effective copy of these Terms of Service by visiting the "Terms of Service" link on the Site. Your continued use of the Service after the date any such changes become effective constitutes your acceptance of the new Terms of Service. You should periodically visit this page to review the current Terms of Service so you are aware of any revisions. If you do not agree to abide by these or any future Terms of Service, you will not access, browse, or use (or continue to access, browse, or use) the Service.

PLEASE READ THESE TERMS OF SERVICE CAREFULLY, AS THEY CONTAIN AN AGREEMENT TO ARBITRATE AND OTHER IMPORTANT INFORMATION REGARDING YOUR LEGAL RIGHTS, REMEDIES, AND OBLIGATIONS.

Your Privacy

At Alayna, we respect the privacy of our users. For more information please see our Privacy Policy, located at https://alayna.ai/privacy (the "Privacy Policy"). By using the Service, you consent to our collection, use and disclosure of personal data and other data as outlined therein.

Additional Terms

In addition, when using certain features through the Service, you will be subject to any additional terms applicable to such features that may be posted on or within the Service from time to time. All such terms are hereby incorporated by reference into these Terms of Service.

Access and Use of the Service

Service Description

The Service is designed to enhance the teaching and learning experience of teachers and students, respectively, through the use of software powered by artificial intelligence.

Your Registration Obligations

Whether you are using the Service as a teacher, student or other user, you may be required to register with Alayna or provide information about yourself (e.g., name and email address) in order to access and use certain features of the Service. If you choose to register for the Service, you agree to provide and maintain true, accurate, current, and complete information about yourself as prompted by the Service's registration form. Registration data and certain other information about you are governed by our Privacy Policy.

Member Account, Password and Security

You are responsible for maintaining the confidentiality of your password and account details, if any, and are fully responsible for any and all activities that occur under your password or account. You agree to (a) immediately notify Alayna of any unauthorized use of your password or account or any other breach of security, and (b) ensure that you exit from your account at the end of each session when accessing the Service. Alayna will not be liable for any loss or damage arising from your failure to comply with this paragraph.

Modifications to Service

Alayna reserves the right to modify or discontinue, temporarily or permanently, the Service (or any part thereof) with or without notice. You agree that Alayna will not be liable to you or to any third party for any modification, suspension or discontinuance of the Service.

General Practices Regarding Use and Storage

You acknowledge that Alayna may establish general practices and limits concerning use of the Service, including the maximum period of time that data or other content will be retained by the Service and the maximum storage space that will be allotted on Alayna's or its third-party service providers' servers on your behalf. You agree that Alayna has no responsibility or liability for the deletion or failure to store any data or other content maintained or uploaded by the Service. You acknowledge that Alayna reserves the right to terminate accounts that are inactive for an extended period of time. You further acknowledge that Alayna reserves the right to change these general practices and limits at any time, in its sole discretion, with or without notice.

School Partnerships

Alayna may enter into partnership with a school or school district that has legal authorization to share teacher and student data. Such partnerships require written permissions and guarantees from an authorized agent of the Local Education Agency. Teachers are authorized to use the Services with students on behalf of the school or school district.

Individual Teachers

Alayna may be used by individual teachers on behalf of students or providing students with access to the Services. Minor students are only authorized to use the Services to the extent authorized by the teacher, to the extent permitted by applicable law, or to the extent permitted by a parent or legal guardian. The teacher is responsible for obtaining consent from parents or legal guardians of students. Alayna reserves the right to provide access to a student's account to the students' parents or legal guardian upon such authorized adult's request.

Conditions of Access and Use

Non-Commercial Use

Subject to your compliance with these Terms, Alayna grants you a non-exclusive, limited, non-transferable, non-sublicensable, non-assignable, and revocable license to access and use the Services solely for your personal, internal business purposes, and other non-commercial use. Unless otherwise expressly authorized herein or in the Service, you agree not to display, distribute, license, perform, publish, reproduce, duplicate, copy, create derivative works from, modify, sell, resell, grant access to, transfer, or otherwise use or exploit any portion of the Service for any commercial purposes.

User Conduct

You are solely responsible for all content that you make available to Alayna. The following are examples of the kinds of content and/or uses that are illegal or prohibited by Alayna. You agree to not use the Service to:

violate any applicable local, state, national, or international law, or any regulations having the force of law;

impersonate any person or entity, or falsely state or otherwise misrepresent your affiliation with a person or entity;

interfere with or disrupt the Service or servers or networks connected to the Service;

solicit personal information from anyone under the age of 18;

harvest or collect email addresses or other contact information of other users;

advertise or offer to sell or buy any goods or services for any business purpose;

further or promote any criminal activity or enterprise;

obtain or attempt to access content or information through any means not intentionally made available;

circumvent, remove, alter, deactivate, degrade, or thwart any content protections; or

engage in any data mining, robots, scraping, or similar data gathering methods.

Competitors

No employee, independent contractor, agent, or affiliate of any competing education technology company is permitted to view, access, or use any portion of the Service without express written permission from Alayna.

Fees

To the extent the Service or any portion thereof is made available for any fee, you may be required to select a payment plan and provide information regarding your credit card or other payment instrument. You represent and warrant to Alayna that such information is true and that you are authorized to use the payment instrument. You will promptly update your account information with Alayna or Stripe, as applicable, of any changes that may occur. You agree to pay Alayna the amount that is specified in the payment plan in accordance with the terms of such plan and these Terms of Service.

Payment Processing

Notwithstanding any amounts owed to Alayna hereunder, ALAYNA DOES NOT PROCESS PAYMENT FOR ANY SERVICES. To facilitate payment for the Service via bank account, credit card, or debit card, we use Stripe, Inc. and its affiliates ("Stripe"), a third-party payment processor. These payment processing services are provided by Stripe and are subject to the Stripe terms and conditions and other policies available at https://stripe.com/legal and Stripe's Global Privacy Policy available at: https://stripe.com/privacy (collectively, the "Stripe Agreements").

Refunds and Cancellations

Payments made by you hereunder are final and non-refundable, unless otherwise determined by Alayna. You may cancel your subscription online by following the cancellation process made available via the Service.

Intellectual Property Rights

Service Content

You acknowledge and agree that the Service may contain content or features ("Service Content") that are protected by copyright, patent, trademark, trade secret, or other proprietary rights and laws. Except as expressly authorized by Alayna, you agree not to modify, copy, frame, scrape, rent, lease, loan, sell, distribute, or create derivative works based on the Service or the Service Content, in whole or in part.

Trademarks

The Alayna name and logos are trademarks and service marks of Alayna (collectively the "Alayna Trademarks"). Nothing in these Terms of Service or the Service should be construed as granting, by implication, estoppel, or otherwise, any license or right to use any of Alayna Trademarks displayed on the Service, without our prior written permission in each instance.

Indemnification

To the extent permitted under applicable law, you agree to defend, indemnify, and hold harmless Alayna, its affiliates, and its and their respective officers, employees, directors, service providers, licensors, and agents (collectively, the "Alayna Parties") from any and all losses, damages, expenses, including reasonable attorneys' fees, rights, claims, actions of any kind, and injury (including death) arising out of or relating to your use of the Service, any User Content, your connection to the Service, your violation of these Terms of Service, or your violation of any rights of another.

Disclaimer of Warranties

YOUR USE OF THE SERVICE IS AT YOUR SOLE RISK. THE SERVICE IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS. THE ALAYNA PARTIES EXPRESSLY DISCLAIM ALL WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED OR STATUTORY, INCLUDING THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT.

Limitation of Liability

YOU EXPRESSLY UNDERSTAND AND AGREE THAT THE ALAYNA PARTIES WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY DAMAGES, OR DAMAGES FOR LOSS OF PROFITS INCLUDING DAMAGES FOR LOSS OF GOODWILL, USE, OR DATA OR OTHER INTANGIBLE LOSSES (EVEN IF THE ALAYNA PARTIES HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES), WHETHER BASED ON CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY, OR OTHERWISE.

Dispute Resolution

Any and all disputes or claims that have arisen or may arise between you and Alayna, whether arising out of or relating to these Terms of Service (including any alleged breach thereof), the Service, any marketing, or any aspect of the relationship or transactions between us, will be resolved exclusively through final and binding arbitration, rather than a court, in accordance with the terms of this Arbitration Agreement, except that you may assert individual claims in small claims court, if your claims qualify.

Termination

You agree that Alayna, in its sole discretion, may suspend or terminate your account (or any part thereof) or use of the Service and remove and discard any content within the Service, for any reason, including for lack of use or if Alayna believes that you have violated or acted inconsistently with the letter or spirit of these Terms of Service.

General

These Terms of Service (together with the terms incorporated by reference herein) constitute the entire agreement between you and Alayna governing your access and use of the Service, and supersede any prior agreements between you and Alayna with respect to the Service. These Terms of Service will be governed by the laws of the State of California without regard to its conflict of law provisions.

Questions? Concerns? Suggestions?

Please contact us at hello@alayna.ai or:

Alayna

9171 Wilshire Blvd, Ste 500

Beverly Hills, CA 90210

Attn: Legal

06 | Student DPA

https://www.gradingpal.com/data-privacy-addendum

Webpage text snapshot | Retrieved 10 October 2026

Legal

Student Data Privacy Addendum

Last updated 28 April 2026

FERPACOPPASOPIPANY Ed Law 2-d

Table of Contents

Applicable Law Overview

This Student Data Privacy Addendum (“DPA”) is designed to comply with the following federal and state student data privacy laws. The table below summarizes each law's scope and GradingPal's commitment under each framework.

Law / Regulation | What It Covers | GradingPal's Commitment |

FERPA (Family Educational Rights and Privacy Act) 20 U.S.C. § 1232g | Protects the privacy of student education records maintained by schools. Governs disclosure of personally identifiable information from education records. | GradingPal acts as a "school official" with a legitimate educational interest. We access Student Data only as directed by the Educational Institution and never disclose education records without proper authorization. |

COPPA (Children's Online Privacy Protection Act) 15 U.S.C. §§ 6501–6506 | Protects the online privacy of children under 13. Requires verifiable parental consent or school operator consent before collecting personal information from children under 13. | GradingPal relies on the Educational Institution's authorization to collect personal information from children under 13 used in connection with the Services provided to the School. We do not collect more information than is reasonably necessary. |

SOPIPA (CA Student Online Personal Information Protection Act) Cal. Bus. & Prof. Code §§ 22584–22585 | Prohibits operators of K–12 websites and online services from using student personal information for non-educational purposes, including targeted advertising and building profiles. | GradingPal does not use Student Data for targeted advertising, does not sell Student Data, and does not build student profiles for non-educational purposes. These prohibitions flow down to all sub-processors. |

NY Education Law 2-d (New York) N.Y. Educ. Law § 2-d | Requires educational agencies and their vendors to protect the confidentiality, privacy, and security of student and teacher personally identifiable information. | GradingPal complies with all NY Education Law 2-d requirements, including data security standards, breach notification, data return/destruction obligations, and the Parents' Bill of Rights for Data Privacy. |

Other Applicable State Laws | Various additional state student data privacy laws may apply based on where the Educational Institution is located. | GradingPal commits to complying with all applicable federal and state student data privacy laws as they may be enacted or amended from time to time. |

Preamble

This Student Data Privacy Addendum (“DPA”) is supplemental to the GradingPal Terms of Use available at www.gradingpal.com/terms (“Terms of Use”). Capitalized terms that are not defined in this DPA have the meaning set out in the Terms of Use. In the event of a conflict between this DPA and the Terms of Use, this DPA shall control with respect to the processing of Student Data.

When GradingPal is used by an Educational Institution or Teacher for an educational purpose, GradingPal may collect or have access to Student Data (as defined below). The processing of Student Data may be subject to the Family Educational Rights and Privacy Act (“FERPA”), the Children's Online Privacy and Protection Act (“COPPA”), the California Student Online Personal Information Protection Act (“SOPIPA”), New York Education Law 2-d, or other applicable federal or state student data privacy laws (together, the “Applicable Data Protection Laws”). To support compliance with Applicable Data Protection Laws, the parties agree as follows:

Definitions

“Student Data” means any personally identifiable information that is directly related to an identifiable Student, including but not limited to: educational records as defined by FERPA; covered information as defined by SOPIPA; personally identifiable information as defined by COPPA; and any information that is subject to protection under NY Education Law 2-d or other Applicable Data Protection Laws. Student Data includes, without limitation, Student names and contact information, submitted assignments and coursework across all assignment types including written work, handwritten submissions, essays, exams, worksheets, quizzes, problem sets, presentations, audio, video, art and design, and other content types, grades and feedback, performance analytics, and interaction data generated through the Services.

“Educational Institution” means a school, school district, school board, or other educational agency or institution that enters into an agreement with GradingPal to use the Services for educational purposes.

“Targeted Advertising” means presenting an advertisement to a Student where the selection of the advertisement is based on Student Data or inferred over time from the usage of GradingPal's Services or the retention of such Student's online activities or requests over time for the purpose of targeting subsequent advertisements. Targeted Advertising does not include advertising to a Student on an internet website based solely on the content of the webpage, or in response to a Student's request for information or feedback.

“De-Identified Data” means data from which all personally identifiable information has been removed or obscured so that the remaining information does not reasonably identify an individual and there is no reasonable basis to believe that the information can be used to identify an individual.

Terms and Conditions

1School Official Status

Educational Institution acknowledges and agrees that GradingPal is acting as a “school official” on behalf of Educational Institution under FERPA with a legitimate educational interest in accessing Student Data, and is otherwise processing Student Data on Educational Institution's behalf under other Applicable Data Protection Laws.

Educational Institution represents and warrants that Educational Institution has the authority under Applicable Data Protection Laws to provide GradingPal with consent to collect personal information from Students for the purpose of providing the Services. To the extent required by Applicable Data Protection Laws, Educational Institution will inform parents and legal guardians how Student Data will be processed by the Services, including by providing a link to GradingPal's Privacy Notice at www.gradingpal.com/privacy.

2Collection and Use of Student Data

GradingPal will collect, access, use, process, store, and disclose Student Data solely as necessary for the purpose of performing the Services on behalf of the Educational Institution. GradingPal will not use Student Data for any purpose other than those set forth in this DPA and the Agreement.

The following table describes the categories of Student Data collected, the source of that data, and the purpose for which it is used:

Category | Data Elements | Source | Purpose |

Identity Data | Full name, username, profile photo, student ID number (where SIS integrated) | Provided by teacher when setting up a classroom, provided by student directly when joining a teacher-invited classroom, or imported from Google Classroom or SIS | Account creation, classroom roster management, delivery of feedback |

Account and Authentication Data | Email address (may be school-issued), SSO authentication tokens | Provided by student at login or provisioned by school | Authentication and account access |

Academic Information | Class enrolments, course and section assignments, grade level, school subject(s), course name(s) | Provided by teacher or imported from Google Classroom or SIS | Contextualising AI grading and feedback to the appropriate educational level and subject |

Submitted Assignments and Coursework | Written work, handwritten submissions, essays, exams, worksheets, quizzes, problem sets, presentations, audio, video, art and design, PDFs, images, and other instructional content | Submitted by students directly within the Service, uploaded by teachers on behalf of students, or read from Google Classroom via the

Google Classroom API | AI-powered rubric-aligned scoring and written feedback generation |

Grades, Scores, and AI-Generated Feedback | AI-generated scores, teacher-reviewed scores, existing grades, rubric evaluations, written feedback comments | Generated by GradingPal, or read from Google Classroom where the teacher has connected their account. AI-generated scores may be written back to Google Classroom on the teacher's instruction. | Grading, teacher reporting, and performance analytics |

Communications Data | Messages, notifications, and other communications sent between teachers and students through the Service | Generated through teacher-student interactions within the Service | Facilitating teacher-student communication within the educational context of the Service |

Performance Analytics | Aggregate and individual performance data derived from grades and submission patterns | Derived by GradingPal from submitted data | Teacher-facing performance insights, reporting, and internal product analytics. Submission metadata and student identifiers are also shared with Mixpanel Inc. for internal product analytics purposes only — not for advertising or profiling. |

Technical and Device Data | IP address, device type, operating system, browser type and version, session identifiers, log data, timestamps, cookies and tracking identifiers | Collected automatically when a student accesses the Service | Service security, fraud prevention, error debugging, and service operation |

Usage and Analytics Data | Interaction patterns, time-on-task, submission timestamps, feature usage data | Collected automatically during use of the Service | Internal product improvement and understanding how the Service is used |

Where a teacher has connected GradingPal to their Google Classroom account, GradingPal may also read assignment details and student roster information from Google Classroom via the Google Classroom API, and may write AI-generated scores and feedback back to Google Classroom on the teacher's instruction. GradingPal's use of data received from Google APIs adheres to the Google API Services User Data Policy, including the Limited Use requirements.

GradingPal will not use Student Data to develop, improve, or train any artificial intelligence or machine learning model, including the AI models used to provide the Services, unless explicitly authorized in writing by the Educational Institution.

3Confidentiality

GradingPal agrees to treat Student Data as confidential and will not share it with third parties other than as described in this DPA, the Agreement, or with the written consent of Educational Institution.

GradingPal will not sell, disclose, make available, or otherwise transfer Student Data to any third party without the prior written consent of Educational Institution, except to the extent that the transfer is necessary to provide the Services. GradingPal will share Student Data with the following categories of third parties as necessary to provide the Services:

AI service providers (including Anthropic PBC, OpenAI OpCo LLC, Google LLC, Microsoft Corporation via Azure AI Foundry, and Mistral AI SAS) and document processing providers (including Unstructured Technologies Inc.) to generate rubric-aligned scores, written feedback, and process submitted assignments. These providers are explicitly prohibited from using Student Data to train their AI models.

Mixpanel Inc. for internal product analytics. Mixpanel receives student identifiers and submission metadata solely to help GradingPal understand how the Service is used and improve it. Mixpanel does not use Student Data for advertising, profiling, or any non-educational purpose.

Internal operations providers (including Notion Labs Inc., Slack Technologies LLC, and Linear Orbit Inc.) where personal data is referenced in the course of investigating technical issues, debugging, or internal communications. Access to Student Data in these tools is limited to authorised GradingPal personnel on a need-to-know basis.

All third parties who receive Student Data are contractually bound to maintain its confidentiality and comply with data protection standards consistent with those provided in this DPA.

4Prohibition on Targeted Advertising

GradingPal is prohibited from using, disclosing, or selling Student Data to:

inform, influence, or enable Targeted Advertising directed at any Student; or

develop a profile of a Student, family member or guardian, or group of students, for any purpose other than providing the Services.

GradingPal does not display advertising of any kind within the Services. This prohibition extends to all Authorized Sub-processors and other third parties to whom GradingPal discloses Student Data.

5Adaptive and Customized Learning

Notwithstanding anything to the contrary in this DPA, GradingPal is expressly permitted to use Student Data for adaptive learning or customized Student learning purposes, including:

Generating personalized grading feedback and recommendations tailored to an individual Student's submitted work;

Adjusting the level and type of feedback provided based on a Student's grade level or course context; and

Enabling teachers to identify performance trends and tailor instruction to individual or group needs.

6De-Identified Data

Notwithstanding anything to the contrary in this DPA, GradingPal will have the right to generate, use, and disclose De-Identified Data for the following purposes:

assisting the Educational Institution or other governmental agencies in conducting research, analytics, and other studies;

research, analytics, and development and improvement of the Services and demonstration of the effectiveness of the Services; and

as otherwise permitted under Applicable Data Protection Laws.

GradingPal agrees not to attempt to re-identify De-Identified Data. GradingPal's right to use De-Identified Data will survive termination of this DPA or any request by Educational Institution to return or destroy Student Data.

7Legally Compelled Disclosure

If GradingPal is legally compelled to disclose any Student Data (whether by judicial or administrative order, applicable law, rule, or regulation), GradingPal will use reasonable efforts to provide Educational Institution with prior written notice before making the disclosure so that Educational Institution can seek a protective order or other appropriate remedy. GradingPal will not be required to provide such notice if it is prohibited from doing so by the applicable order, law, rule, or regulation.

8COPPA Authorization — Direct Notice to School

Educational Institution hereby authorizes GradingPal to collect, use, and disclose personal data from children under 13 years old in connection with the provision of the Services as set out in this DPA, pursuant to the school operator exception under COPPA (16 C.F.R. § 312.5(b)(1)).

Upon written request from Educational Institution with regard to such data, GradingPal will:

Provide Educational Institution with an opportunity to review the child's personal data;

Provide Educational Institution with the right to request deletion of the child's personal data; and

Provide Educational Institution with the ability to cease further collection or use of the child's personal data.

If Educational Institution declines to provide consent or withdraws consent for the further collection or use of a child's personal data, GradingPal may no longer be able to provide the Services for that child. Educational Institution affirms that it will provide appropriate notices to parents of the School's use of third-party service providers such as GradingPal's Services.

9New York Education Law 2-d Compliance

To the extent GradingPal provides Services to Educational Institutions located in New York State, or that are otherwise subject to New York Education Law 2-d (“NY Ed Law 2-d”), GradingPal agrees to comply with all applicable requirements of NY Ed Law 2-d and its implementing regulations, including the following:

9.1 Limitations on Use

GradingPal will not sell Student Data or use or disclose it for any marketing or advertising purpose;

GradingPal will not disclose Student Data to any third party without prior written consent of the parent or eligible student, except as permitted under FERPA, NY Ed Law 2-d, and the Agreement;

GradingPal will not use Student Data for any purpose not explicitly authorized in this DPA or the Agreement; and

GradingPal will limit its employees', officers', and contractors' access to Student Data to those individuals who have a legitimate need to access such data for the purpose of providing the Services.

9.2 Data Security

GradingPal will implement and maintain data security practices that are consistent with industry standards and that comply with the data security requirements of NY Ed Law 2-d;

GradingPal will implement and maintain an information security program that includes administrative, technical, and physical safeguards appropriate to the nature and scope of the Student Data processed; and

GradingPal will require all sub-processors that handle Student Data on its behalf to implement data security practices that are at least as protective as those required by this DPA.

9.3 Breach Notification

In the event of a breach or unauthorized release of Student Data, GradingPal will notify the Educational Institution in the most expedient manner possible and without unreasonable delay;

Such notification will include, to the extent known at the time: the nature of the breach or unauthorized release; the Student Data involved; and the measures taken or planned to contain, remediate, and prevent recurrence of the breach; and

GradingPal will adhere to all applicable federal and state requirements with respect to the breach, including required responsibilities and procedures for notification and mitigation.

9.4 Parents' Bill of Rights

GradingPal acknowledges that Educational Institutions subject to NY Ed Law 2-d are required to publish a Parents' Bill of Rights for Data Privacy and Security and to provide a supplemental information form to parents and eligible students describing how GradingPal uses Student Data. GradingPal agrees to provide Educational Institutions with all information reasonably required to complete such supplemental information form upon request. This information includes:

The name and contact information of GradingPal's privacy officer or designated privacy contact;

The categories of Student Data collected or processed by GradingPal;

The purposes for which Student Data is collected or processed;

The sub-processors to whom GradingPal discloses Student Data and for what purposes; and

GradingPal's data retention and destruction policies with respect to Student Data.

9.5 Supplemental Information

NY Ed Law 2-d Supplemental Information

GradingPal Privacy Contact: hello@gradingpal.com | Cues Technologies Inc., 9171 Wilshire Blvd, Ste 500, Beverly Hills, CA 90210

Student Data Collected: Student names and contact information; submitted assignments and coursework across all supported assignment types (including written work, handwritten submissions, essays, exams, worksheets, quizzes, problem sets, presentations, audio, video, art and design, and other content types); AI-generated grading scores and feedback; performance analytics; grade-level and course information; interaction data with the Service.

Purpose: To provide AI-powered grading, feedback generation, performance analytics, and related instructional tools to Educational Institutions and their students.

Sub-processors Receiving Student Data: Anthropic PBC (AI services); OpenAI OpCo LLC (AI services); Google LLC — Google AI/Gemini (AI services); Microsoft Corporation — Azure AI Foundry (AI services); Mistral AI SAS (OCR and document model); Unstructured Technologies Inc. (document parsing); Amazon Web Services Inc. — AWS S3 (file storage); Google LLC — Google Cloud Platform (infrastructure); Supabase Inc. (database); Vercel Inc. (hosting); Render Services Inc. (hosting); Velt Inc. (collaborative annotations); Mixpanel Inc. (internal product analytics); Axiom Inc. (application logs). Full list available at www.gradingpal.com/sub-processors.

Data Retention: Student Data is retained only as long as necessary to provide the Services. Student Data is deleted within 30 days of termination of the Agreement upon request, unless required to be retained under applicable law.

10Data Rights

GradingPal will reasonably assist Educational Institution in complying with requests from individuals to exercise rights with regard to Student Data under Applicable Data Protection Laws, including rights of access, correction, and deletion. Upon written request from Educational Institution:

GradingPal will provide Educational Institution with access to Student Data in GradingPal's possession;

GradingPal will correct inaccurate Student Data identified by Educational Institution; and

GradingPal will delete Student Data as directed by Educational Institution, subject to any legal retention obligations.

11Data Security

GradingPal will implement and maintain reasonable administrative, physical, and technical safeguards designed to prevent any unauthorized use, access, processing, destruction, loss, alteration, or disclosure of Student Data. These safeguards include, at a minimum:

Encryption of Student Data at rest (AES-256) and in transit (TLS 1.2 or higher);

Role-based access controls limiting access to Student Data to only those employees with a need-to-know based on their specific job function or role;

Multi-factor authentication for internal systems that access or store Student Data;

Documented information security policies and procedures;

Regular security risk assessments and vulnerability testing;

Employee training on data privacy and security practices; and

Contractual data protection obligations on all sub-processors that handle Student Data.

12Security Incident Notification

In the event of an unauthorized release, disclosure, or acquisition of Student Data that compromises the security, confidentiality, or integrity of the Student Data maintained by GradingPal (“Security Incident”), GradingPal will notify Educational Institution without undue delay and in compliance with applicable law, including NY Ed Law 2-d where applicable.

Such notification will include, to the extent known at the time of notification:

A description of the nature of the Security Incident, including the categories and approximate number of Data Subjects and records involved;

The Student Data affected by the Security Incident;

The likely consequences of the Security Incident;

A description of the measures taken or proposed to address the Security Incident, including measures to mitigate its possible adverse effects; and

Contact information for the GradingPal representative from whom Educational Institution may obtain further information.

GradingPal's notification of or response to a Security Incident under this clause shall not be construed as an acknowledgement by GradingPal of any fault or liability with respect to the Security Incident.

13Data Return and Destruction

Within thirty (30) days of the termination or expiration of the Agreement, or earlier upon Educational Institution's reasonable written request, GradingPal will, at the election of Educational Institution:

return to Educational Institution all Student Data in GradingPal's possession in a commonly used, machine-readable format; or

securely destroy all copies of Student Data in GradingPal's possession and provide Educational Institution with written certification of such destruction.

Notwithstanding the foregoing, GradingPal may retain Student Data: (i) to the extent required by applicable law; (ii) in the form of De-Identified Data as permitted by clause 6; or (iii) as otherwise expressly authorized by Educational Institution in writing. Any Student Data retained after the termination of the Agreement will continue to be subject to the confidentiality and security obligations of this DPA.

GradingPal is developing the ability for school plan customers to configure automated Student Data deletion schedules directly within the product, enabling Educational Institutions to set deletion cycles aligned to their assessment calendar. This feature will be made available to institutional customers on school plans and will be subject to the terms of this DPA when released.

14Sub-Processor Obligations

GradingPal will use commercially reasonable efforts to ensure that any sub-processor that has access to Student Data maintains appropriate data protection standards consistent with applicable law and the nature of the Student Data processed. GradingPal will remain fully liable to Educational Institution for the acts and omissions of its sub-processors with respect to their handling of Student Data.

GradingPal will maintain a current list of sub-processors that have access to Student Data and will make this list available to Educational Institution upon request. GradingPal will provide Educational Institution with at least fourteen (14) days' advance written notice before adding or replacing any sub-processor that will process Student Data, to allow Educational Institution an opportunity to object.

15Term and Survival

This DPA is effective as of the date the Educational Institution first uses the Services or enters into the Agreement, whichever is earlier, and will continue in full force and effect for as long as GradingPal processes Student Data on behalf of Educational Institution. The obligations of this DPA that by their nature should survive termination, including but not limited to obligations relating to confidentiality, data security, data destruction, and De-Identified Data, will survive termination or expiration of the Agreement.

16Amendments

GradingPal may update this DPA from time to time to reflect changes in applicable law or our data practices. GradingPal will provide Educational Institution with at least thirty (30) days' prior written notice before any material changes to this DPA take effect. Educational Institution's continued use of the Services following such notice constitutes acceptance of the updated DPA.

Where required by applicable law, GradingPal will provide Educational Institution with an opportunity to opt out of material changes before the Student Data is used in a materially different manner than was disclosed when the information was collected.

Exhibit A: New York Education Law 2-d Vendor Certification

Pursuant to New York Education Law 2-d and its implementing regulations (8 NYCRR Part 121), Cues Technologies Inc. (GradingPal) hereby certifies the following:

GradingPal will not sell Student Data;

GradingPal will not use or disclose Student Data for marketing or advertising purposes;

GradingPal will not use Student Data for any purpose not explicitly authorized in the Agreement or this DPA;

GradingPal will implement and maintain a data security program that is consistent with the NIST Cybersecurity Framework or equivalent industry-recognized security standards;

GradingPal will comply with the data breach notification requirements of NY Ed Law 2-d and will notify the Educational Institution of any breach or unauthorized release of Student Data without unreasonable delay;

GradingPal will ensure that all subcontractors and sub-processors that have access to Student Data are bound by data protection obligations consistent with this DPA and NY Ed Law 2-d; and

GradingPal will cooperate with the Educational Institution to provide parents and eligible students with access to their Student Data and the ability to request correction or deletion of such data.

Note: Some New York school districts may require a separate executed NY Ed Law 2-d addendum using their own template. GradingPal is prepared to execute such district-specific forms. Contact hello@gradingpal.com for assistance.

Executing This Addendum

Educational Institutions wishing to execute a signed copy of this Student Data Privacy Addendum should contact hello@gradingpal.com. By using GradingPal's Services for educational purposes, Educational Institutions agree to the terms and conditions of this DPA.

Applicable Laws: FERPA | COPPA | SOPIPA | NY Education Law 2-d | Effective Date: April 28, 2026

Cues Technologies Inc. (GradingPal) | hello@gradingpal.com

Cues Technologies Inc., 9171 Wilshire Blvd, Ste 500, Beverly Hills, CA 90210, United States · hello@gradingpal.com

07 | Data Processing Addendum

https://www.gradingpal.com/data-processing-addendum

Webpage text snapshot | Retrieved 10 October 2026

Legal

Data Processing Agreement

Last updated 28 April 2026

This Data Processing Addendum (“DPA”) supplements and forms part of the agreement between Cues Technologies Inc. (“GradingPal”) and the Educational Institution or (where applicable) a Teacher in relation to the transfer and processing of Covered Data in connection with the provision of the Service.

Table of Contents

1Definitions

1.1 Unless otherwise defined in this DPA, capitalized terms used but not defined within this DPA will have the meaning set forth in the Agreement. The following capitalized terms used in this DPA will be defined as follows:

"Agreement" means the agreement entered into between GradingPal and the Customer incorporating the terms at www.gradingpal.com/terms or as otherwise agreed between the parties.

"Applicable Data Protection Laws" means all applicable laws, rules, regulations, and governmental requirements relating to the privacy, confidentiality, or security of Personal Data, as they may be amended or otherwise updated from time to time, including (without limitation) the GDPR.

"Authorized Sub-processor" means the Sub-processors listed in Schedule 4 of this DPA, and any other Sub-processors appointed in accordance with paragraph 7.4.

"Controller Purposes" means: (a) undertaking internal research and development to develop, test, improve and alter the functionality of GradingPal's products and services; (b) creating fully de-identified and anonymized datasets for evaluation and quality assessment of GradingPal's products and services, provided that such datasets contain no Student Data or other personally identifiable information; and (c) administering Customer accounts on the Service and managing GradingPal's relationship with the Customer under the Agreement, in each case as further described in Schedule 1. For the avoidance of doubt, GradingPal does not use Student Data or personally identifiable information to train its AI models or those of its sub-processors.

"Covered Data" means Personal Data that is: (a) provided by or on behalf of the Customer to GradingPal in connection with the provision of the Service; or (b) obtained, developed, produced or otherwise Processed by GradingPal, or its agents or subcontractors, for the purposes of providing the Service, in each case as further described in Schedule 1.

"Customer" means the Educational Institution or a Teacher that enters into the Agreement with GradingPal in relation to the Service.

"Data Subject" has the meaning given to it in the GDPR.

"Effective Date" means the date GradingPal and the Customer enter into the Agreement.

"GDPR" means Regulation (EU) 2016/679 (the "EU GDPR") or, where applicable, the "UK GDPR", as defined in section 3(10) of the Data Protection Act 2018.

"Personal Data" has the meaning given to it in the GDPR.

"Processing" has the meaning given to it in the GDPR, and "Process", "Processes" and "Processed" will be interpreted accordingly.

"Security Incident" means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or unauthorized access to (including unauthorized internal access to), Covered Data.

"Lawful Transfer Mechanism" means any mechanism recognised under Applicable Data Protection Laws as providing an adequate basis for the international transfer of Personal Data, including adequacy decisions, certification under an

approved data privacy framework (such as the EU-US Data Privacy Framework or UK-US Data Bridge), standard contractual clauses, binding corporate rules, or such other mechanisms as may be recognised under applicable law from time to time.

"Sub-processor" means a processor engaged by another processor to carry out the instructions of the controller.

"Swiss Data Protection Laws" means the Swiss Federal Act on Data Protection of 25 September 2020 ("FADP") and the Swiss Data Protection Ordinance of 31 August 2022, and any new or revised version of these laws that may enter into force from time to time.

1.2 The terms “controller” and “processor” have the meanings given to them in the GDPR.

2Interaction with the Agreement

2.1 This DPA is incorporated into and forms an integral part of the Agreement. This DPA supplements and (in case of contradictions) supersedes the Agreement with respect to any Processing of Covered Data.

3Role of the Parties

3.1 The Parties acknowledge and agree that:

save as set out in paragraph 3.1(b), GradingPal Processes Covered Data as a processor in the performance of its obligations under the Agreement and this DPA, and Customer acts as a controller; and

GradingPal acts as a controller with respect to the Processing of Covered Data for the Controller Purposes as identified in Schedule 1.

4Details of Data Processing

4.1 The details of the Processing of Personal Data under the Agreement and this DPA (including subject matter, nature and purpose of the Processing, categories of Personal Data and Data Subjects) are described in the Agreement and in Schedule 1 to this DPA.

4.2 Other than in respect of its Processing of Covered Data for the Controller Purposes:

GradingPal will only Process Covered Data under the instructions provided by the Customer and in accordance with Applicable Data Protection Laws; and

the Agreement and this DPA shall constitute the instructions to GradingPal for the Processing of Covered Data by GradingPal, and the Customer may issue further written instructions in accordance with this DPA.

4.3 GradingPal will:

provide the Customer with information to enable the Customer to conduct and document any data protection impact assessments and prior consultations with supervisory authorities required under Applicable Data Protection Laws; and

promptly inform the Customer if, in its opinion, an instruction from the Customer infringes Applicable Data Protection Laws.

5Compliance

5.1 The Customer shall comply with its obligations under Applicable Data Protection Laws and shall ensure that:

any instructions to GradingPal in relation to the Processing of Covered Data comply with Applicable Data Protection Laws;

it provides such information to Data Subjects regarding the Processing of Covered Data by GradingPal as required under Applicable Data Protection Laws; and

it promptly notifies GradingPal of any request received from a Data Subject to exercise their rights under Applicable Data Protection Laws.

6Confidentiality and Disclosure

6.1 GradingPal shall:

limit access to Covered Data to personnel who have a business need to have access to such Covered Data; and

ensure that such personnel are subject to obligations at least as protective of the Covered Data as the terms of this DPA and the Agreement, including duties of confidentiality with respect to any Covered Data to which they have access.

7Sub-Processors

7.1 GradingPal may Process Covered Data anywhere that GradingPal or its Sub-processors maintain facilities, subject to the remainder of this paragraph 7. Covered Data is processed and stored on infrastructure located in the United States and other jurisdictions where GradingPal and its Sub-processors operate. GradingPal ensures that any international transfer of Covered Data is made in accordance with Applicable Data Protection Laws and the requirements of Schedule 3 of this DPA.

7.2 The Customer grants GradingPal general authorization to engage any Authorized Sub-processor listed in Schedule 4 to Process Covered Data.

7.3 GradingPal shall:

use commercially reasonable efforts to ensure that each Authorized Sub-processor maintains appropriate data protection standards consistent with applicable law and the nature of the Covered Data processed; and

remain liable for each Authorized Sub-processor's compliance with the obligations under this DPA.

7.4 GradingPal maintains a current list of Authorized Sub-processors at www.gradingpal.com/sub-processors. GradingPal will update this page prior to adding or replacing any sub-processor and will notify institutional Customers of material changes to the sub-processor list upon request. If the Customer has a reasonable objection to the addition or replacement of a sub-processor, it may notify GradingPal in writing and the parties will work together in good faith to address the concern.

8Data Subject Rights Requests

8.1 GradingPal will notify the Customer without undue delay of any request received by GradingPal or any Authorized Sub-processor from a Data Subject to assert their rights under Applicable Data Protection Laws in relation to Covered Data Processed by GradingPal as a processor or sub-processor (a “Data Subject Request”).

8.2 Other than in respect of GradingPal's Processing of Covered Data for the Controller Purposes, as between GradingPal and the Customer, the Customer will have sole discretion in responding to the Data Subject Request. GradingPal shall not respond to the Data Subject Request without the Customer's prior consent, save that GradingPal may advise the Data Subject that their request has been forwarded to the Customer.

8.3 GradingPal will provide the Customer with reasonable assistance as necessary for the Customer to fulfil its obligation under Applicable Data Protection Laws to respond to Data Subject Requests in respect of Covered Data.

9Security

9.1 GradingPal will implement and maintain appropriate technical and organizational data protection and security measures designed to ensure security of Covered Data, including protection against unauthorized or unlawful Processing and against accidental loss, destruction, or damage of or to Covered Data.

9.2 When assessing the appropriate level of security, GradingPal shall take into account the nature, scope, context and purpose of the Processing as well as the risks presented by the Processing, in particular from accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to Covered Data.

9.3 GradingPal will implement and maintain as a minimum standard the measures set out in Schedule 2.

10Information and Audits

10.1 The Customer may audit GradingPal's compliance with this DPA in respect of its Processing of Covered Data. The Parties agree that all such audits will be conducted:

not more than annually, unless more frequent audits are required by a supervisory authority with jurisdiction over the Processing of Covered Data or otherwise under Applicable Data Protection Laws;

upon reasonable written notice to GradingPal;

only during GradingPal's normal business hours; and

in a manner that does not materially disrupt GradingPal's business or operations.

10.2 With respect to any audits conducted in accordance with this paragraph:

the Customer may engage a third-party auditor to conduct the audit on its behalf, save that GradingPal may reasonably object to the engagement of a third-party auditor if such third-party auditor is a competitor of GradingPal; and

GradingPal shall not be required to facilitate any such audit unless and until the Parties have agreed in writing the scope and timing of such audit.

10.3 The Customer shall promptly notify GradingPal of any non-compliance discovered during an audit. The results of the audit shall be GradingPal's confidential information.

10.4 GradingPal shall provide to the Customer upon request, or may provide in response to any audit request, either: (a) data protection compliance certifications issued by a commonly accepted certification issuer which has been audited by a data security expert or publicly certified auditing company; or (b) such other documentation reasonably evidencing the implementation of the technical and organizational data security measures in accordance with industry standards.

10.5 If an audit requested by the Customer is addressed in the documents or certification provided by GradingPal, and: (a) the certification or documentation is dated within twelve (12) months of the Customer's audit request; and (b) GradingPal confirms that there are no known material changes in the controls audited — the Customer agrees to accept that certification or documentation in lieu of conducting a physical audit of the controls covered.

11Security Incidents

11.1 GradingPal shall notify the Customer in writing without undue delay after becoming aware of any Security Incident.

11.2 GradingPal shall take reasonable steps to contain, investigate, and mitigate any Security Incident, and shall send the Customer timely information about the Security Incident, to the extent known to GradingPal or as the information becomes available, including but not limited to: the nature of the Security Incident; the measures taken to mitigate or contain the Security Incident; and the status of the investigation.

11.3 GradingPal shall provide reasonable assistance with the Customer's investigation of any Security Incidents and any of the Customer's obligations in relation to the Security Incident under Applicable Data Protection Laws, including any notification to Data Subjects or supervisory authorities.

11.4 GradingPal's notification of or response to a Security Incident under this paragraph 11 shall not be construed as an acknowledgement by GradingPal of any fault or liability with respect to the Security Incident.

12Term, Deletion and Return

12.1 This DPA shall commence on the Effective Date and, notwithstanding any termination of the Agreement, will remain in effect until, and automatically expire upon, GradingPal's deletion of all Covered Data as described in this DPA.

12.2 GradingPal shall:

if requested to do so by the Customer within thirty (30) days of expiry of the Agreement (the “Retention Period”), provide a copy of all Covered Data in such commonly used format as requested by the Customer, or provide a self-service functionality allowing the Customer to download such Covered Data; and

on expiry of the Retention Period, delete all copies of Covered Data Processed by GradingPal or any Authorized Sub-processors, other than any Covered Data that GradingPal is required to retain to comply with applicable law, to pursue or defend legal claims, or for the Controller Purposes.

13International Transfers

13.1 GradingPal ensures that any transfer of Covered Data outside the EEA, UK, or other jurisdiction from which the Customer transfers data, is made in accordance with Applicable Data Protection Laws, including by relying on a Lawful Transfer Mechanism as defined in clause 1.1 of this DPA and as further described in Schedule 3.

13.2 GradingPal will promptly inform the Customer if, in its reasonable opinion, a change in Applicable Data Protection Laws means that GradingPal can no longer provide a Lawful Transfer Mechanism for the international transfer of Covered Data, and the parties will work together in good faith to identify an alternative lawful basis for the transfer.

Schedule 1: Details of Processing

A. List of Parties

| Customer (Data Exporter) | GradingPal (Data Importer) |

Role | Data exporter (controller) | Data importer (controller / processor) |

Contact person | The administrator of the Customer's account as notified to GradingPal. | hello@gradingpal.com |

Activities relevant to the transfer | The performance of the Agreement. | The performance of the Agreement. |

B. Description of Processing

Data Subjects | Categories of Personal Data | Sensitive Data | Purpose of Processing |

Main points of contact for accounts held by Educational Institutions (Account Administrators) | Identity and account data: name, email address, name of Educational Institution. Account preferences. Questions and correspondence. | None | Communicating with Account Administrators in relation to the administration of the Agreement and the relationship between the parties. Sending promotional emails in accordance with Account Administrator preferences. Identifying ways to improve the Service. |

Teachers with accounts associated with, authorized by, or paid for by an Educational Institution (Teachers on School Accounts) | Identity and account data: full name, username, profile photo, email address, authentication tokens (SSO). Professional data: school or institution name and address, role and title, subjects taught, grade levels, class rosters, employee or staff ID (where SIS integrated). User-generated content: assignments, rubrics, lesson materials, comments, feedback, and communications through the Service. Technical and device data: IP address, device type, OS, browser, session identifiers, log data, timestamps, cookies. Usage and analytics data: features used, clicks, time spent, grading patterns, error reports, diagnostic data. | None, unless contained in content and materials generated through, or prompts or feedback submitted to the Service. | Provision of access to the features and functionalities of the Service, including personalization. Provision of service-related communications. Provision of technical support. Distribution of promotional emails in accordance with data subject preferences. Informing product development and improvement. |

Teachers with individual accounts not associated with, authorized by, or paid for by an Educational Institution (Independent Teachers) | Identity and account data: full name, username, profile photo, email address, authentication tokens (SSO). Billing and payment data: billing name and address, subscription and invoice history (payment tokens handled by Stripe). User-generated content: assignments, rubrics, lesson materials, comments, feedback, and communications through the Service. Technical and device data: IP address, device type, OS, browser, session identifiers, log data, timestamps, cookies. Usage and analytics data: features used, clicks, time spent, grading patterns, error reports, diagnostic data. | None, unless contained in content and materials generated through, or prompts or feedback submitted to the Service. | Provision of access to the features and functionalities of the Service, including personalization. Processing subscription payments. Provision of service-related communications. Provision of technical support. Distribution of promotional emails in accordance with data subject preferences. Informing product development and improvement. |

Students | Identity data: full name, username, profile photo, student ID (where SIS integrated). Account and authentication data: email address, SSO tokens. Academic information: class enrolments, course and section assignments, grade level, subjects, course names. Submitted assignments and coursework across all supported content types. Grades, scores, and AI-generated feedback. Communications data: messages, notifications, and other communications through the Service. Performance analytics derived from grades and submissions. Technical and device data: IP address, device type, OS, browser, session identifiers, log data, timestamps, cookies. Usage and analytics data: interaction patterns, time-on-task, submission timestamps. Where Google Classroom is connected, data may be read from or written back to Google Classroom. | Any sensitive personal data contained in work product uploaded to the Service by the Student. | Provision of AI-powered grading and feedback. Generating performance analytics. Reading from and writing scores and feedback to Google Classroom on teacher instruction. Service security and operation. Internal product analytics. |

All users | Device used to access the Service, such as IP address. | None | Provision of access to the features and functionalities of the Service. Ensuring the security and integrity of the Service. |

C. Competent Supervisory Authority

For transfers of Covered Data from customers located in the European Economic Area, the competent supervisory authority is the Irish Data Protection Commissioner, unless otherwise required by applicable law.

For transfers of Covered Data from customers located in the United Kingdom, the competent supervisory authority is the UK Information Commissioner's Office (ICO), acting independently under the UK GDPR and the Data Protection Act 2018.

Schedule 2: Technical and Organizational Measures

GradingPal employs a combination of policies, procedures, guidelines and technical and physical controls to protect the Personal Data it processes from accidental loss and unauthorized access, disclosure or destruction.

Governance and Policies

GradingPal assigns personnel with responsibility for the determination, review and implementation of security policies and measures.

GradingPal has documented its security measures in a security policy and/or other relevant guidelines and documents, and reviews its security measures on a regular basis to ensure they continue to be appropriate for the data being protected.

GradingPal establishes and follows secure configurations for systems and software and ensures that security measures are considered during project initiation and the development of new IT systems.

Breach Response

GradingPal has a breach response plan that has been developed to address data breach events. The plan is regularly tested and updated.

In the event of a Security Incident, GradingPal will notify affected Customers without undue delay in accordance with applicable law and this DPA.

Intrusion, Anti-Virus and Anti-Malware Defences

GradingPal's IT systems used to process Personal Data have appropriate data security software installed, including industry standard firewall, anti-virus, anti-malware and intrusion detection systems.

GradingPal collects, maintains and reviews event logs to identify suspicious activity.

Access Controls

Limiting administrative access privileges and use of administrative accounts.

Changing all default passwords before deploying operating systems, assets or applications.

Requiring authentication and authorization to gain access to IT systems.

Implementing least privilege access to IT systems.

Maintaining appropriate procedures for controlling the allocation and revocation of Personal Data access rights, including revoking employee access when they leave or change role.

Using multi-factor authentication to access data on GradingPal's systems.

Automatically timing out and locking user terminals if left idle.

Blocking access to IT systems after multiple failed authentication attempts.

Monitoring and logging access to and amendments of IT systems.

Availability and Back-Up of Personal Data

GradingPal has a documented disaster recovery plan that ensures that key systems and data can be restored in a timely manner in the event of a physical or technical incident. The plan is regularly tested and updated.

GradingPal regularly backs up information on IT systems and keeps back-ups in separate locations. Back-ups are tested regularly.

Segmentation of Personal Data

GradingPal separates and limits access between network components and, where appropriate, implements measures to provide for separate processing of Personal Data collected and used for different purposes.

GradingPal does not use live data for testing its systems.

Encryption

GradingPal encrypts data at rest using AES-256 and in transit using TLS 1.2 or higher.

Encryption keys are stored separately from the encrypted information.

Transmission or Transport of Personal Data

GradingPal implements appropriate controls to secure Personal Data during transmission or transit, including encryption in transit and logging Personal Data when transmitted electronically.

Asset and Software Management

GradingPal maintains an inventory of IT assets and the data stored on them, together with a list of owners of the relevant IT assets.

GradingPal requires network level authentication and uses client certificates to validate and authenticate systems.

GradingPal deploys automated patch management tools and software update tools for operating systems and software, and proactively monitors software vulnerabilities.

GradingPal stores API keys securely in environment variables and does not store API keys on the client side or publish them in public code repositories.

Staff Training and Awareness

GradingPal's agreements with staff and contractors set out information security responsibilities.

GradingPal carries out regular staff training on data security and privacy issues and ensures new starters receive appropriate training before they begin their role.

GradingPal conducts appropriate screening and background checks on individuals who have access to sensitive Personal Data.

Staff are subject to disciplinary measures for breaches of GradingPal's policies and procedures relating to data privacy and security.

Selection of Service Providers

GradingPal assesses service providers' ability to meet its security requirements before engaging them.

GradingPal has written contracts in place with service providers requiring them to implement appropriate security measures to protect the Personal Data they have access to and to limit the use of Personal Data in accordance with GradingPal's instructions.

Assistance with Data Subject Rights Requests

GradingPal maintains accurate records to enable it to identify quickly all Personal Data processed on behalf of the Customer.

Back-ups of Personal Data processed by GradingPal on behalf of the Customer are overwritten on a regular basis and in any event every thirty (30) days to ensure deletion and rectification requests are fully actioned.

Schedule 3: International Data Transfers

This Schedule describes how GradingPal ensures that international transfers of Covered Data are made lawfully in accordance with Applicable Data Protection Laws.

1. General Commitment

GradingPal ensures that any transfer of Covered Data outside the EEA, UK, Switzerland, Australia, or other jurisdiction from which the Customer provides data, is made in accordance with Applicable Data Protection Laws. GradingPal does this by relying on one or more of the following Lawful Transfer Mechanisms, as appropriate to the relevant transfer:

An adequacy decision issued by the relevant regulatory authority confirming that the destination country provides an equivalent level of data protection;

Certification of the recipient under an approved data privacy framework, such as the EU-US Data Privacy Framework or the UK-US Data Bridge;

Standard Contractual Clauses adopted by the European Commission or approved under applicable UK or Swiss law; or

Such other lawful transfer mechanism as may be recognised under Applicable Data Protection Laws from time to time.

2. Current Transfer Safeguards

GradingPal currently transfers Covered Data primarily to the United States, where GradingPal and its Sub-processors are located. The majority of GradingPal's Sub-processors (including AWS, Google, OpenAI, Anthropic, Stripe, Vercel, Render, Upstash, Loops, Resend, Mixpanel, Sentry, and Ably) are certified under the EU-US Data Privacy Framework and/or the UK-US Data Bridge, providing a lawful basis for these transfers without the need for additional contractual safeguards. For Sub-processors that are not certified under these frameworks, GradingPal relies on Standard Contractual Clauses or other appropriate safeguards as required. Mistral AI SAS is a French company whose infrastructure is hosted within the European Union; no transfer safeguard is required for data processed by Mistral.

GradingPal will maintain an up-to-date record of the transfer mechanisms applicable to each Sub-processor and will make this available to the Customer upon request.

3. Changes to Transfer Mechanisms

Data transfer law evolves over time. GradingPal will monitor changes to Applicable Data Protection Laws and will update its transfer mechanisms as necessary to ensure continued compliance. GradingPal will notify the Customer if any material change to the applicable transfer mechanism is required and will work with the Customer in good faith to maintain a lawful basis for the transfer of Covered Data.

4. Australia

Where Covered Data originates from Australia and is transferred to GradingPal in the United States, GradingPal will take reasonable steps to ensure that it handles such Covered Data in a manner consistent with the Australian Privacy Principles. GradingPal is responsible for the acts and omissions of overseas recipients of Australian Covered Data as if they were its own. In the event of a suspected Security Incident affecting Australian Covered Data, GradingPal will carry out a reasonable and expeditious assessment within 30 days of becoming aware.

Schedule 4: Authorized Sub-Processors

The following sub-processors are authorized to process Covered Data in connection with the provision of the Service. GradingPal maintains the current and complete sub-processor list at www.gradingpal.com/sub-processors and will update it prior to adding or replacing any sub-processor in accordance with paragraph 7.4 of this DPA.

Sub-processor | Purpose | Country |

Ably Realtime Ltd. | Real-time messaging | United Kingdom |

Amazon Web Services, Inc. | Cloud infrastructure | United States |

Anthropic PBC | AI services | United States |

Axiom, Inc. | Logging and observability | United States |

Chatwoot, Inc. | Customer support | United States |

Functional Software, Inc. | Error monitoring | United States |

Google LLC | Cloud infrastructure and AI | United States |

Linear Orbit, Inc. | Internal operations | United States |

Loops, Inc. | Email communications | United States |

Microsoft Corporation | AI services | United States |

Mistral AI SAS | AI services | France |

Mixpanel, Inc. | Product analytics | United States |

Notion Labs, Inc. | Internal operations | United States |

OpenAI OpCo, LLC | AI services | United States |

Render Services, Inc. | Cloud infrastructure | United States |

Resend, Inc. | Email communications | United States |

Slack Technologies, LLC | Internal communications | United States |

Stripe, Inc. | Payment processing | United States |

Supabase, Inc. | Cloud infrastructure | United States |

Unstructured Technologies, Inc. | Document processing | United States |

Upstash, Inc. | Cloud infrastructure | United States |

Velt, Inc. | Collaboration services | United States |

Vercel, Inc. | Cloud infrastructure | United States |

Executing This Addendum

Customers wishing to execute a signed copy of this Data Processing Addendum should contact hello@gradingpal.com. By using GradingPal's Services, Customers agree to the terms and conditions of this DPA.

Effective Date: April 28, 2026 | Cues Technologies Inc. (GradingPal) | hello@gradingpal.com

Cues Technologies Inc., 9171 Wilshire Blvd, Ste 500, Beverly Hills, CA 90210, United States · hello@gradingpal.com

08 | Sub-processors

https://www.gradingpal.com/sub-processors

Webpage text snapshot | Retrieved 10 October 2026

Legal

Sub-processors

Last updated 3 May 2026

This page lists the third-party sub-processors engaged by GradingPal (Cues Technologies Inc.) in connection with the provision of its Services. GradingPal updates this list prior to engaging any new sub-processor. For questions, please contact hello@gradingpal.com.

Sub-processor | Purpose | Country |

Ably Realtime Ltd. | Real-time messaging | United Kingdom |

Amazon Web Services, Inc. | Cloud infrastructure | United States |

Anthropic PBC | AI services | United States |

Axiom, Inc. | Logging and observability | United States |

Chatwoot, Inc. | Customer support | United States |

Functional Software, Inc. | Error monitoring | United States |

Google LLC | Cloud infrastructure and AI | United States |

Linear Orbit, Inc. | Internal operations | United States |

Loops, Inc. | Email communications | United States |

Microsoft Corporation | AI services | United States |

Mistral AI SAS | AI services | France |

Mixpanel, Inc. | Product analytics | United States |

Notion Labs, Inc. | Internal operations | United States |

OpenAI OpCo, LLC | AI services | United States |

Render Services, Inc. | Cloud infrastructure | United States |

Resend, Inc. | Email communications | United States |

Slack Technologies, LLC | Internal communications | United States |

Stripe, Inc. | Payment processing | United States |

Supabase, Inc. | Cloud infrastructure | United States |

Unstructured Technologies, Inc. | Document processing | United States |

Upstash, Inc. | Cloud infrastructure | United States |

Velt, Inc. | Collaboration services | United States |

Vercel, Inc. | Cloud infrastructure | United States |

This list is maintained at www.gradingpal.com/sub-processors and updated prior to any material changes. To be notified of changes, please contact hello@gradingpal.com.

Last Updated: May 3, 2026 | Cues Technologies Inc. | 9171 Wilshire Blvd Ste 500, Beverly Hills, CA 90210

Cues Technologies Inc., 9171 Wilshire Blvd, Ste 500, Beverly Hills, CA 90210, United States · hello@gradingpal.com

09 | Terms of Use

https://www.gradingpal.com/terms

Webpage text snapshot | Retrieved 10 October 2026

Legal

Terms of Service

Last updated 28 April 2026

Welcome to www.gradingpal.com, the website and online services of Cues Technologies Inc. ("we," "us," or "GradingPal"). This page explains the terms by which you may use our online services, web application, and software provided on or in connection with the service (collectively, the "Services").

These Terms of Use apply to all visitors, users and others who access the Services ("Users" or "you"). When the Services are used by teachers, school districts, school boards, and individual schools within a district ("Educational Institutions"), then "you" includes teachers, including but not limited to administrators who access the Services on their behalf ("Teachers"), students who use the Services under the supervision of their Educational Institutions ("Students"), and parents and legal guardians of Students ("Parents"). These Terms of Use and any additional terms incorporated herein, including any separate contracts with Educational Institution users, are collectively referred to herein as the "Agreement."

These terms are a legally binding agreement between you and GradingPal regarding your use of the Services. By accessing or using the Services, checking the box marked "I Agree," or by otherwise affirmatively stating your desire to use the Services, you signify that you have read, understood, and agree to be bound by this Agreement; otherwise you may not use the Services. You also acknowledge that your information will be collected and used as set forth in the GradingPal Privacy Notice. Because our Services change relatively often, the terms in this Agreement and our Privacy Notice may change too. Upon making changes, we will update the "Effective Date" found at the top of this page. Your continued use of the Services after any changes constitutes your acceptance of the new terms.

PLEASE READ THESE TERMS CAREFULLY TO ENSURE THAT YOU UNDERSTAND EACH PROVISION.

These terms contain a mandatory individual arbitration agreement in Section 3.8 (the "Arbitration Agreement") and class action/jury waiver provision in Section 3.9 (the "Class Action/Jury Trial Waiver") that apply to you. With limited exceptions, these provisions require the exclusive use of final and binding arbitration on an individual basis to resolve disputes, rather than jury trials or class, collective, private attorney general or representative actions.

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Section 1. GradingPal Services

GradingPal's Services provide a web-based AI grading application built for Students, Teachers, and Educational Institutions to assist with rubric-aligned scoring, feedback generation across multiple assignment types including written work, handwritten submissions, essays, exams, worksheets, quizzes, problem sets, presentations, audio, video, art and design, and other instructional content, as well as performance analytics and other instructional productivity tools. The Services are accessible through any standard web browser at www.gradingpal.com and may integrate with third-party platforms such as Google Classroom.

This is a contract between you and GradingPal. You must read and agree to this Agreement before using the Services. If you do not agree, do not use the Services. You may use the Services only if you can form a binding contract with GradingPal, and only in compliance with this Agreement and all applicable laws. The Services are not available to any Users previously removed from the Services by GradingPal.

1.1 Eligibility

By agreeing to these Terms of Use, you represent and warrant to us that: (a) you are at least 18 years old; or (b) you have and shall maintain permission of your Parent or Educational Institution to use the Services; and (c) you have not previously been suspended or removed from the Services; and (d) your registration and your use of the Services is and will be in compliance with any and all applicable laws and regulations.

If you are a Parent who allows your minor child to use the Services, you accept these Terms on behalf of your child and are responsible for your child's activity on the Services.

If you are an Educational Institution or Teacher who will use the Services in an educational setting, and your Educational Institution has not entered into a separate data processing agreement with GradingPal, then the GradingPal Student Data Privacy Addendum is incorporated herein by reference. If you are a Student under the age of 18 who uses these Services through your Educational Institution, then your use of the Services may be subject to additional policies and restrictions imposed by your Educational Institution or Teachers with which you must comply.

Subject to the terms and conditions of this Agreement, GradingPal grants to you a limited, non-exclusive, non-transferable, revocable permission to access and use the Services. We reserve all rights not expressly granted to you in the Services and the GradingPal Content (as defined below). We may terminate this license at any time for any or no reason.

1.2 Details About the GradingPal Services

Your account on the Services (your "User Account") gives you access to the services and functionality that we may establish and maintain from time to time and in our sole discretion. You may cancel your User Account at any time, subject to the terms in Section 1.7.

We may maintain different types of User Accounts for different types of Users, including individual Teacher accounts, Student accounts, and institutional accounts. If you open a User Account on behalf of an Educational Institution, company, organization or other entity, then: (i) "you" includes you and that entity, and (ii) you represent and warrant that you are an authorized representative of the entity with the authority to bind the entity to this Agreement.

By connecting to the Services with a third-party service such as Google Classroom, you give GradingPal permission to access and use your information from that service as permitted by that service, and to store your log-in credentials for that service. Our Service's use and transfer of information received from Google APIs will adhere to the Google API Services User Data Policy, including the Limited Use requirements. By connecting your GradingPal account with Google, you agree to comply with the Google APIs Terms of Service and such other terms and conditions as Google may provide from time to time.

You may never use another User's User Account without permission. When creating your User Account, you must provide accurate and complete information, and you must keep this information up to date. You are solely responsible for the activity that occurs on your User Account, and you must keep your User Account password secure. You must notify GradingPal immediately of any breach of security or unauthorized use of your User Account. GradingPal will not be liable for any losses caused by any unauthorized use of your User Account.

1.3 Control Over Use of Services

You may control your profile and how you interact with the Services by changing the settings in your account settings page. By providing GradingPal with your email address you consent to our using the email address to send you Services-related notices, including any notices required by law, in lieu of communication by postal mail. We may also use your email address to send you other messages, such as changes to features of the Services and special offers. If you do not want to receive such email messages, you may opt out by clicking on the "unsubscribe" link provided in such communications. Opting out may prevent you from receiving email messages regarding updates, improvements, or offers.

1.4 Restricted Uses

By using the Services, you agree not to do any of the following:

Copy, distribute, or disclose any part of the Services in any medium, including by any automated or non-automated "scraping";

Use any automated system, including "robots," "spiders," or "offline readers," to access the Services in a manner that sends more request messages to the GradingPal servers than a human can reasonably produce in the same period of time using a conventional web browser;

Transmit spam, chain letters, or other unsolicited email;

Attempt to interfere with, compromise the system integrity or security of, or decipher any transmissions to or from the servers running the Services;

Take any action that imposes, or may impose, an unreasonable or disproportionately large load on our infrastructure;

Transmit any malicious software agents through the Services;

Collect or harvest any third-party personally identifiable information from the Services;

Use the Services for any commercial solicitation purposes;

Impersonate another person or entity, misrepresent your affiliation with a person or entity, conduct fraud, hide or attempt to hide your identity;

Interfere with the proper working of the Services;

Access any content on the Services through any technology or means other than those provided or authorized by the Services; or

Bypass any measures we use to prevent or restrict access to the Services, including features that prevent or restrict use or copying of any content or enforce limitations on use.

We continually update our Services. While we plan to continue to offer and improve our Services, we may, without prior notice, change, cancel, create usage limits for, or permanently or temporarily stop offering or allowing you access to the Services ("Service Changes"). We will try to give you advance notice of Service Changes that will materially adversely affect you, but this may not always be practical and we retain the right to make Service Changes without notice or liability.

1.5 User Contributions

The Services may contain interactive features that allow Users to post, submit, publish, display, or transmit (collectively, "Share") documents, text, messages, content and other materials ("User Contributions") to Users or other persons on or through the Services. All User Contributions must comply with this Agreement.

By Sharing User Contributions through our Services, you agree to allow others to view, edit, share, and/or interact with those User Contributions in accordance with your settings and this Agreement. We have the right (but not the obligation) in our sole discretion to monitor and remove any User Contributions Shared via our Services. You hereby grant each User a non-exclusive license to access your User Contributions through our Services and to use, reproduce, distribute, display and perform such User Contributions.

You further grant, and represent and warrant that you have all rights necessary to grant, to us an irrevocable, perpetual, transferable, sublicensable (through multiple tiers), fully paid, royalty-free, and worldwide right and license to use, copy, store, modify, distribute and display your User Contributions: (a) to maintain and provide our Services; (b) to improve our products and services and for other business purposes such as data analysis, customer research, developing new products or features, and identifying usage trends; and (c) to perform such other actions as described in the GradingPal Privacy Notice or as authorized by you.

You represent and warrant that you own or control all rights in and to the User Contributions, have the right to grant the licenses granted above, and all of your User Contributions do and will comply with this Agreement. You understand and acknowledge that you are responsible for any User Contributions you Share, and you, not we, have full responsibility for such content, including its legality, reliability, accuracy, and appropriateness.

We have the right to:

Remove or refuse to post any User Contributions in our sole discretion;

Take any action with respect to any User Contribution that we deem necessary or appropriate, including if we believe that such User Contribution violates this Agreement, infringes any intellectual property right or other right of any person or entity, threatens the safety of Users or the public, or could create liability for us;

Disclose your identity or other information about you to any third party who claims that material posted by you violates their rights, including intellectual property rights or privacy rights; and

Terminate or suspend your access to all or part of the Services for any or no reason, including any violation of this Agreement.

You waive and hold us and our affiliates, licensees, and service providers harmless from any claims resulting from any action we or our affiliates, licensees, and service providers take during, or taken as a consequence of, investigations related to alleged violations of this Agreement.

1.6 User Input; Output

You may submit User Contributions to be processed by the Services' generative AI features ("User Input") to generate outputs such as rubric-aligned scores, written feedback, performance analytics, and other instructional resources (collectively, "Output"). Subject to your compliance with this Agreement, you may use such Output for any lawful purpose on a royalty-free basis, provided that you acknowledge and agree that:

GradingPal has no responsibility for the legality, reliability, accuracy, and appropriateness of User Input;

GradingPal is neither responsible nor liable to any third party for the content or accuracy of User Input or the Output resulting from its processing by the Services;

No ownership of Intellectual Property Rights in the Services is transferred to you as a result of your submission of User Input or use of any of the Services or Output; and

We may, by notice to you at any time, limit your use of the Output or require you to cease using Output (and delete any copies of Output) if we determine, in our sole and absolute discretion, that your use of the Output may infringe the rights of any third party.

You shall not represent that Output was human-generated or use the Output to train your own machine learning models.

DUE TO THE NATURE OF MACHINE LEARNING, THE OUTPUT MAY NOT BE UNIQUE ACROSS USERS AND THE SERVICES MAY GENERATE THE SAME OR SIMILAR OUTPUT FOR DIFFERENT USERS. USE OF THE SERVICES MAY RESULT IN INCORRECT OUTPUT THAT DOES NOT ACCURATELY REFLECT REALITY. YOU MUST EVALUATE THE ACCURACY OF ANY OUTPUT AS APPROPRIATE FOR YOUR USE CASE, INCLUDING BY USING HUMAN REVIEW OF THE OUTPUT. YOU UNDERSTAND AND AGREE THAT THE OUTPUT MAY CONTAIN ERRORS, INACCURACIES, OR "HALLUCINATIONS" AND MAY BE INACCURATE, OBJECTIONABLE, INAPPROPRIATE, OR OTHERWISE UNSUITED TO YOUR PURPOSE. YOU AGREE THAT WE SHALL NOT BE LIABLE FOR ANY DAMAGES YOU OR ANY THIRD PARTY ALLEGE TO INCUR AS A RESULT OF OR RELATING TO ANY OUTPUT GENERATED BY OR ACCESSED ON OR THROUGH THE SERVICES.

1.7 Fees for Services

GradingPal offers both a free tier and paid subscription plans for individual Teachers. Paid subscriptions are available on a monthly or annual basis. Certain aspects of the Services may be provided for a fee or other charge. If you elect to use paid aspects of the Services, you agree to our Pricing and Payment Terms available at www.gradingpal.com/pricing, as we may update them from time to time. We may add new services for additional fees and charges, or add or amend fees and charges for existing services, at any time in our sole discretion.

Monthly and annual subscriptions for individual Teachers renew automatically. YOUR SUBSCRIPTION WILL AUTOMATICALLY RENEW AT THE END OF EACH BILLING PERIOD (MONTHLY OR ANNUAL, AS APPLICABLE) UNLESS YOU CANCEL BEFORE THE RENEWAL DATE. It is your responsibility to cancel your subscription prior to renewal if you do not wish to be charged for the next billing period. You may cancel your subscription at any time through your account settings page.

THERE ARE NO REFUNDS FOR SUBSCRIPTION FEES FOR INDIVIDUAL TEACHER ACCOUNTS, INCLUDING MONTHLY AND ANNUAL PLANS, AND INCLUDING FEES CHARGED DUE TO FAILURE TO CANCEL PRIOR TO AUTOMATIC RENEWAL. IN THE EVENT THAT GRADINGPAL SUSPENDS OR TERMINATES YOUR ACCOUNT OR THIS AGREEMENT, YOU SHALL RECEIVE NO REFUND OR EXCHANGE FOR ANY UNUSED TIME ON A SUBSCRIPTION, ANY LICENSE OR SUBSCRIPTION FEES, ANY CONTENT OR DATA ASSOCIATED WITH YOUR ACCOUNT, OR FOR ANYTHING ELSE.

For B2B contracts with Educational Institutions, pricing and payment terms are set forth in a separate written agreement or order form, which may include custom pricing and invoicing through a purchase order process. School and institutional contracts do not automatically renew and are subject to the renewal terms specified in the applicable agreement. In the event of a conflict between such separate agreement and these Terms, the terms of the separate agreement shall control with respect to pricing and payment.

All information that you provide in connection with a purchase or transaction must be accurate, complete, and current. You agree to pay all charges incurred by users of your credit card, debit card, or other payment method used in connection with a purchase or transaction at the prices in effect when such charges are incurred. You will pay any applicable taxes relating to any such purchases or transactions. Payments are processed by Stripe, Inc. and subject to Stripe's terms of service.

Section 2. Rights in Our Content

"Intellectual Property Rights" means all worldwide patent rights, copyright rights, moral rights, rights of publicity, trademark, trade dress and service mark rights, goodwill, trade secret rights and other intellectual property rights as may now exist or hereafter come into existence, and all related applications and registrations, renewals and extensions.

The Services and all materials made available to you in connection with them, including but not limited to software, images, text, graphics, illustrations, logos, patents, trademarks, service marks, copyrights, photographs, audio, videos, music, and any content belonging to other Users (the "GradingPal Content"), and all related Intellectual Property Rights, are the exclusive property of Cues Technologies Inc. and its licensors. Except as expressly specified in this Agreement, nothing herein shall be deemed to create a license in or under any such Intellectual Property Rights, and you agree not to sell, license, rent, modify, distribute, copy, reproduce, transmit, publicly display, publicly perform, publish, adapt, edit or create derivative works from any GradingPal Content. Any use of GradingPal Content for a purpose not expressly permitted by this Agreement is strictly prohibited.

If you send us ideas or comments about our Services, you agree that we may freely use or reference those ideas and comments and we do not owe you any payment or have any other obligation of any kind for such ideas or comments.

Section 3. General Legal Terms

3.1 GradingPal Data

Certain parts of the Services allow Teachers to access performance analytics and grading data associated with their account and their students' submissions ("GradingPal Data"). This includes assessment-level performance data, AI-generated scores and written feedback, and related instructional insights generated through your use of the Services.

GradingPal Data is licensed to you for your use on a limited basis and is governed solely by the terms of this Agreement. GradingPal owns the account you use to access the Services, along with any rights of access or rights to data stored by or on behalf of GradingPal on GradingPal servers.

You understand and agree that any data, account history and account content residing on GradingPal's servers may be deleted at any time for any reason in GradingPal's sole discretion, with or without notice and with no liability of any kind. We do not provide or guarantee, and expressly disclaim, any value, cash or otherwise, attributed to any data residing on GradingPal's servers.

3.2 Privacy and Security

We care about the privacy of our Users. By using the Services, you acknowledge that we will collect, use and disclose your personally identifiable information as set forth in our Privacy Notice.

When GradingPal is used by an Educational Institution or Teacher for an educational purpose, GradingPal may collect or have access to Student Data. "Student Data" is personal information that is directly related to an identifiable Student that is maintained by an Educational Institution or related entity or organization, or by us on behalf of such entity. Student Data may include "educational records" as defined by the Family Educational Rights and Privacy Act ("FERPA"), 20 U.S.C. § 1232(g). If you are a Teacher or Educational Institution who will use the Services in an educational setting, and your Educational Institution has not entered into a separate data processing agreement with GradingPal, then the GradingPal Student Data Privacy Addendum available at www.gradingpal.com/data-privacy-addendum is incorporated herein by reference and forms part of this Agreement.

For Educational Institutions entering into a formal B2B agreement with GradingPal, a separate Data Processing Addendum will be executed as part of that agreement. The Data Processing Addendum governs how GradingPal processes personal data on behalf of the Educational Institution and is not incorporated into these Terms of Use for institutional customers — the terms of the separately executed Data Processing Addendum shall control.

3.3 Third-Party Links and Information

The Services may contain links to third-party materials that are not owned or controlled by GradingPal. GradingPal does not endorse or assume any responsibility for any such third-party sites, information, materials, products, or services. If you access a third-party website or service from the Services or share your User Contributions on or through any third-party website or service, you do so at your own risk, and you understand that this Agreement does not apply to your use of such sites. You expressly relieve GradingPal from any and all liability arising from such use of any third-party website, service, or content.

3.4 Indemnity

You agree to defend, indemnify and hold harmless GradingPal, Cues Technologies Inc., and its subsidiaries, agents, licensors, managers, and other affiliated companies, and their employees, contractors, agents, officers and directors, from and against any and all claims, damages, obligations, losses, liabilities, costs or debt, and expenses (including but not limited to attorney's fees) arising from: (i) your use of and access to the Services, including any data, Output or content transmitted or received by you; (ii) your violation of any term of this Agreement, including but not limited to your breach of any of the representations and warranties; (iii) your violation of any third-party right, including but not limited to any right of privacy or Intellectual Property Rights; (iv) your violation of any applicable law, rule or regulation; (v) any content or information that is submitted via your account; or (vi) any other party's access and use of the Services with your unique username, password or other appropriate security code.

3.5 Warranty Disclaimer

You acknowledge that the Services are provided on an "AS IS," "WITH ALL FAULTS," and "AS AVAILABLE" basis, including without limitation with respect to any AI features. The entire risk associated with the quality, performance, accuracy, and effort of the Services lies with you. To the maximum extent permitted by applicable law, the Services are provided without warranties of any kind, whether express or implied, including but not limited to warranties or conditions of: (a) merchantability; (b) fitness for a particular purpose; (c) workmanlike effort; (d) title, non-infringement, and breach of third party rights; (e) adequacy, accuracy, timeliness, and completeness of content or results; (f) arising through course of dealing or usage of trade; and (g) uninterrupted or error-free access or use.

Without limiting the foregoing, GradingPal, its subsidiaries, its affiliates, and its licensors do not warrant that the GradingPal Content is accurate, reliable or correct; that the Services will meet your requirements; that the Services will be available at any particular time or location, uninterrupted; that any defects or errors will be corrected; or that the Services are free of viruses or other harmful components. Any content or output downloaded or otherwise obtained through the use of the Services is obtained at your own risk and you will be solely responsible for any damage to your computer system or loss of data that results from such download or your use of the Services.

Federal law, some states, provinces and other jurisdictions do not allow exclusions and limitations of certain implied warranties, so some of the above limitations may not apply to you.

3.6 Limitation of Liability

To the maximum extent permitted by applicable law, in no event shall GradingPal, its affiliates, agents, directors, employees, suppliers or licensors be liable for any indirect, punitive, incidental, special, consequential or exemplary damages, including without limitation damages for loss of profits, goodwill, use, data or other intangible losses, that result from the use of, or inability to use, the Services. Under no circumstances will GradingPal be responsible for any damage, loss or injury resulting from hacking, tampering or other unauthorized access or use of the Services or your account or the information contained therein.

To the maximum extent permitted by applicable law, GradingPal assumes no liability or responsibility for any: (i) errors, mistakes, or inaccuracies of content; (ii) personal injury or property damage, of any nature whatsoever, resulting from your access to or use of our Services; (iii) unauthorized access to or use of our secure servers and/or any and all personal information stored therein; (iv) interruption or cessation of transmission to or from the Services; (v) malicious

software agents that may be transmitted to or through our Services by any third party; (vi) errors or omissions in any content or for any loss or damage incurred as a result of the use of any content posted, emailed, transmitted, or otherwise made available through the Services; and/or (vii) content you create or the defamatory, offensive, or illegal conduct of any third party. In no event shall GradingPal, its affiliates, agents, directors, employees, suppliers, or licensors be liable to you for any claims, proceedings, liabilities, obligations, damages, losses or costs in an amount exceeding the amount you paid to GradingPal hereunder in the twelve (12) months preceding the claim or $100.00, whichever is greater.

This limitation of liability section applies whether the alleged liability is based on contract, tort, negligence, strict liability, or any other basis, even if GradingPal has been advised of the possibility of such damage.

The Services are controlled and operated from US-based facilities, and we make no representations that they are appropriate or available for use in other locations. If you access or use the Services from other jurisdictions, you are entirely responsible for compliance with all applicable United States and local laws and regulations, including export and import regulations. You may not use the Services if you are a resident of a country embargoed by the United States, or are a foreign person or entity blocked or denied by the United States government.

3.7 Governing Law

You agree that: (i) the Services will be deemed solely based in California; and (ii) the Services will be deemed passive services that do not give rise to personal jurisdiction over us, either specific or general, in jurisdictions other than California. This Agreement will be governed by the internal substantive laws of the State of California, without respect to its conflict of laws principles. You acknowledge that this Agreement evidences a transaction involving interstate commerce. Notwithstanding the preceding sentences with respect to the substantive law, the Federal Arbitration Act (9 U.S.C. §§ 1-16) ("FAA") governs the interpretation and enforcement of the Arbitration Agreement in Section 3.8 and preempts all state laws to the fullest extent permitted by law. The application of the United Nations Convention on Contracts for the International Sale of Goods does not apply. You agree to submit to the exclusive personal jurisdiction of the federal and state courts located in Los Angeles County, California for any actions related to this Agreement.

3.8 Arbitration

Read this section carefully because it requires Parents and Teachers to arbitrate their disputes and limits the manner in which they can seek relief from GradingPal. If you are a Parent or Teacher, this section (the "Arbitration Agreement") applies to and governs any dispute, controversy, or claim between you and GradingPal that arises out of or relates to, directly or indirectly: (a) this Agreement, including the formation, existence, breach, termination, enforcement, interpretation, validity, or enforceability thereof; (b) access to or use of the Services, including receipt of any advertising or marketing communications; (c) any transactions through, by, or using the Services; or (d) any other aspect of your relationship or transactions with us, directly or indirectly, as a consumer ("Claim" or collectively, "Claims"). The Arbitration Agreement shall apply, without limitation, to all Claims that arose or were asserted before or after your agreement to this Agreement.

If you are a new User, you can reject and opt-out of this Arbitration Agreement within 30 days of accepting this Agreement by emailing us at hello@gradingpal.com with your first and last name and stating your intent to opt-out of the Arbitration Agreement. Opting out of the Arbitration Agreement does not affect any other part of this Agreement.

For any Claim, you agree to first contact us at hello@gradingpal.com and attempt to resolve the dispute with us informally. In the unlikely event that we have not been able to resolve a Claim after sixty (60) days, we each agree to resolve any Claim exclusively through binding arbitration by AAA before a single arbitrator (the "Arbitrator"), under the Expedited Procedures then in effect for AAA (the "Rules"), except as provided herein. In the event of any conflict between the Rules and this Arbitration Agreement, this Arbitration Agreement shall control. AAA may be contacted at www.adr.org. The arbitration will be conducted in the U.S. county where you live or in Los Angeles County, California, unless we agree otherwise.

Nothing in this section shall be deemed as: preventing us from seeking injunctive or other equitable relief from the courts as necessary to prevent the actual or threatened infringement, misappropriation, or violation of our data security, Intellectual Property Rights or other proprietary rights; or preventing you from asserting claims in small claims court, if your claims qualify and so long as the matter remains in such court and advances on only an individual (non-class, non-representative) basis.

3.9 Class Action / Jury Trial Waiver

With respect to all Parents and Teachers, regardless of whether they have obtained or used the Services for personal, commercial or other purposes, all claims must be brought in the parties' individual capacity, and not as a plaintiff or class member in any purported class action, collective action, private attorney general action or other representative proceeding. This waiver applies to class arbitration, and unless we agree otherwise, the arbitrator may not consolidate more than one person's claims. You and GradingPal agree that the arbitrator may award relief only to an individual claimant and only to the extent necessary to provide relief on your individual claim(s). You and GradingPal further agree that, by entering into this Agreement, you and GradingPal are each waiving the right to a trial by jury or to bring, join, or participate in a class action, collective action, private attorney general action, or other representative proceeding of any kind as a plaintiff or class member.

3.10 DMCA Notice

Since we respect artist and content owner rights, it is our policy to respond to alleged infringement notices that comply with the Digital Millennium Copyright Act of 1998 ("DMCA"). If you believe that your copyrighted work has been copied in a way that constitutes copyright infringement and is accessible via the Services, please notify our copyright agent as set forth in the DMCA. For your complaint to be valid under the DMCA, you must provide the following information in writing:

An electronic or physical signature of a person authorized to act on behalf of the copyright owner;

Identification of the copyrighted work that you claim has been infringed;

Identification of the material that is claimed to be infringing and where it is located on the Services;

Information reasonably sufficient to permit us to contact you, such as your address, telephone number, and email address;

A statement that you have a good faith belief that use of the material in the manner complained of is not authorized by the copyright owner, its agent, or law; and

A statement, made under penalty of perjury, that the above information is accurate, and that you are the copyright owner or are authorized to act on behalf of the owner.

The above information must be submitted to:

Attn: DMCA Notice / Legal Department

Cues Technologies Inc.

9171 Wilshire Blvd, Ste 500

Beverly Hills, CA 90210

Email: hello@gradingpal.com

Under Federal Law, if you knowingly misrepresent that online material is infringing, you may be subject to criminal prosecution for perjury and civil penalties, including monetary damages, court costs, and attorney's fees. In accordance with the DMCA and other applicable law, we have a policy of terminating, as appropriate, Users deemed to be repeat infringers. We may also choose to limit access to the Services and terminate the accounts of Users who infringe the intellectual property rights of others, whether or not there is any repeat infringement.

3.11 Severability and Waiver

This Agreement, and any rights and licenses granted hereunder, may not be transferred or assigned by you, but may be assigned by us in accordance with the terms of our Privacy Notice. This Agreement, together with any amendments and any additional agreements you may enter into with GradingPal in connection with the Services, constitutes the entire agreement between you and GradingPal concerning the Services. If any provision of this Agreement is deemed invalid by a court of competent jurisdiction, the invalidity of such provision will not affect the validity of the remaining provisions of this Agreement, which will remain in full force and effect. No waiver of any term of this Agreement will be deemed a further or continuing waiver of such term or any other term.

3.12 How to Contact Us

If you have any questions about this Agreement, please contact us at:

Cues Technologies Inc.

9171 Wilshire Blvd, Ste 500

Beverly Hills, CA 90210

Email: hello@gradingpal.com

Website: www.gradingpal.com

3.13 Updates to These Terms of Use

If we make material changes to this Agreement, we will provide reasonable notice to you, such as by email to your registered email address, by prominent posting on this website or our online services, or through other appropriate communication channels. All changes shall be effective from the date of publication unless otherwise provided. Your continued use of the Services after any such changes constitutes your acceptance of the updated Agreement.

Cues Technologies Inc., 9171 Wilshire Blvd, Ste 500, Beverly Hills, CA 90210, United States · hello@gradingpal.com